

PROTECTING THE WAITĀKERE RANGES

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LIST OF ACRONYMS

Auckland RPS	Auckland Regional Policy Statement 1999
DOC	Department of Conservation
EDS	Environmental Defence Society
Heritage Act	Waitākere Ranges Heritage Area Act 2008
Kauri Dieback Plan	National (Kauri Dieback) Pest Management Plan
Legacy District Plan	Auckland Council District Plan – Operative Waitākere Section 2003
NZCPS	New Zealand Coastal Policy Statement 2010
ONL	Outstanding natural landscape
RMA	Resource Management Act 1991
Settlement Act	Te Kawerau a Maki Claims Settlement Act 2015

1. INTRODUCTION

Aotearoa New Zealand's distinctive natural landscapes are an integral component of our individual and national well-being. For Māori, they provide a deep cultural connection with the past and future through whakapapa. Landscapes provide physical and spiritual respite, historical links and havens for biodiversity. They are a source for creative endeavour, a key component of the New Zealand brand and, prior to Covid-19, were a major drawcard for burgeoning international tourist numbers.

Despite the importance of landscapes to New Zealand, we are still seeing poor landscape outcomes. In order to address this matter, the Environmental Defence Society (EDS) has initiated a project to investigate how existing legislative and policy tools could be more effectively deployed to manage important natural landscapes, as well as how a new 'protected landscapes' model could be adopted to achieve better landscape protection in New Zealand.

The project involves case studies of landscape protection in Te Manahuna/Mackenzie Basin, Te Pātaka o Rākahautū/Banks Peninsula, Waitākere Ranges and the Hauraki Gulf Islands. It also includes an investigation of potential linkages between tourism and landscape protection. All the case studies are being integrated into an overall synthesis report, which will also contain a broader exploration of the concept of landscape in the New Zealand context, which will be released later in 2020.

"The Waitākere Ranges is an area of substantial and largely bush-clad hills that separates metropolitan Auckland from the beaches of the West Coast... The greater Auckland area derives much of its character from the backdrop of the Ranges and it is generally accepted by the community that the area should be preserved as far as is possible so that both present and future generations of Aucklanders can continue to enjoy it."¹

This case study on the Waitākere Ranges follows on from a body of work undertaken by EDS in 2004. At that time, over 16 years ago, landscapes in New Zealand were under threat from urban development, intensification and the spread of weeds and pests. In respect of the Waitākere Ranges that report concluded:

The Waitākere Ranges is under considerable pressure for further residential development as a result of being located on the fringes of New Zealand's largest urban area. The area has been recognised as being of regional and national significance and has a long history of landscape protection measures. Under current district plan provisions, considerable further development is provided for in the area. Concern has been expressed about the ability of the district plan to protect the Ranges in the long term and the council is exploring options to strengthen protection.²

This report examines whether the landscapes of the Waitākere Ranges are better protected now than

they were 16 years ago. In particular, it explores the effectiveness of the Waitākere Ranges Heritage Area Act 2008 (Heritage Act) which was enacted in response to concerns that the planning regime was insufficient to protect the landscape characteristics of the area. The Act applies to regional and local parkland as well as private land in the Waitākere Ranges (see Figure 1). The purpose of the Act is to "recognise the national, regional, and local significance of the Waitākere Ranges Heritage Area" and "to promote the protection and enhancement of its heritage features for present and future generations."

The Waitākere Ranges Heritage Area

The Heritage Act establishes the Waitākere Ranges Heritage Area spanning approximately 27,700ha of public and private land. It encompasses the Waitākere Ranges Regional Park but extends further into northern and eastern bush and foothill living areas, and into western coastal communities. The area is of local, regional and national significance and is outstanding in northern New Zealand for its ecosystems and landscapes.³

In this case study, we describe the landscape and its importance to both the Auckland region and New Zealand more widely. We also canvass pressures on the landscape, both historic and current, to help understand the way in which the landscape has changed and how it may change in the future. We then draw some conclusions about the effectiveness of the Heritage Act.

To help inform the case study, we undertook ten in-depth interviews with people involved with the management of the Waitākere Ranges, including landowners, stakeholders, agency people and experts. These interviews were undertaken on a confidential basis to encourage frankness. We have included some quotes to provide 'colour' to the analysis below. However, we have not identified the source of these in order to maintain the confidentiality of the respondent. Some quotes are from published sources, and where this is the case, we have footnoted the reference.





Figure 1: *The Waitākere Ranges Heritage Area*⁴

ENDNOTES

- 1 Taylor, undated, 1
- 2 Peart, 2004, 56
- 3 Waitākere Ranges Heritage Area Act 2008, Preamble (2) and (3)
- 4 Auckland Council, 2018, 2

2. LANDSCAPES OF THE WAITĀKERE RANGES

The Waitākere Ranges sit on an uplifted dissected plateau comprised of resistant volcanic material which has created a landscape of gorges, bluffs, waterfalls, ridges, slopes and gullies.¹ There are a series of large catchments terminating in the dunes and exposed coastal beaches to the west and a less rugged landscape along the Manukau Harbour.²

"There is a remarkable contrast between the two coasts of Auckland. The east coast is low lying, sheltered, sunny, placid... But the west coast is surging, stimulating, rugged, handsome... Here peaks and rugged headlands rise sheer out of the sea, immense, fantastic, beautiful." *Edward Earl Vaile* (1949)³

The western coastal landscapes include patterns of windswept beaches, dunes, streams, wetlands, ridges, headlands, cliffs, islands and extensive coastal forests, all of which contribute to the wildness of the west coast.⁴ This contrasts with the northern Manukau Harbour's sense of sheltered openness with expansive tidal flats, cliffs, headlands, broad estuaries, beaches, streams, wetlands and coastal forest.⁵ Rolling pastoral foothills frame the bush-covered Ranges from the east, providing a buffer between the Ranges proper and the sprawl of metropolitan Auckland.

These landscapes support a wide range of flora and fauna. The principal characteristic of the Ranges proper is its bush-clad nature, typically dominated by kauri interspersed with pockets of rimu and northern rātā. In summer, the coastlines drip with the red colours of pōhutakawa flowers. The diverse habitat of the Waitākere Ranges attracts a variety of both indigenous and exotic birdlife.

Sixty per cent of the Heritage Area comprises the Waitākere Ranges Regional Park⁶ which was founded on reserves set aside from the late 1890s. It incorporates the Auckland Centennial Memorial Park, New Zealand's first regional park which was established in 1941. The Park was created to celebrate Auckland's 1940 centennial, with the intention of purchasing "as much of the land on the Waitākere Ranges lying between the water supply reserves and the West Coast as can be bought with the funds available".⁷ As a result of World War II, the funding was cut drastically, resulting in only 7,852ha being initially purchased. Over time, this has been supplemented with gifts from private landowners, further purchases and the transfer of some Crown and Auckland City Council parkland (such as Cornwallis/Kaitarakihi, Cascades Kauri and Spraggs Bush). These acquisitions have more than doubled the Park's original size.⁸



Te Henga/Bethells (Craig Potton)

"[The Regional Park] consists of 17,000 hectares of contiguous park land in close proximity to the Auckland metropolitan area. It has a dramatic and distinctively beautiful landscape of steep hill country almost entirely covered in bush with spectacular gorges and bluffs. On its western side it is bounded by a rugged coastline with wild black-sand surf beaches. In the south the forested flanks of the ranges meet the Manukau Harbour. Small pockets of farmland are retained in the park representing the farmed heritage of the area and the rural landscape value of open pasture settings amongst dense bush and precipitous terrain. There are magnificent views afforded from a number of locations, across the ranges to the sea, to Āwhitu Peninsula and to the urban area of Auckland City. The Waitākere Ranges also provides an important visual backdrop to the metropolitan area."⁹

The Heritage Area comprises one of the largest blocks of contiguous indigenous vegetation in Auckland, with approximately 21,200ha of native bush.¹⁰ This indigenous ecological ecosystem is an important element of the Heritage Area's distinctive landscape and adds to the area's amenity values and scenic beauty.

The majority of the Heritage Area has very sparse settlement which is scattered along roadways and in small clusters. Parts of the eastern foothills have denser settlement patterns, but even there, built elements are generally subservient to the bush and coastal landscapes.¹¹



Anawhata (Craig Potton)

ENDNOTES

1 Auckland Regional Council, 2010, 376

2 Auckland Regional Council, 2010, 376

3 Waitākere Ranges Protection Society, 1978, 3

4 Melean Absolum Limited, 2017, 8

5 Melean Absolum Limited, 2017, 8

6 Auckland Regional Council, 2010, 375

7 Waitākere Ranges Protection Society, 1978, 4

8 Waitākere Ranges Protection Society, 1978, 5

9 Auckland Regional Council, 2010, 375

10 Auckland Council, 2018, 37

11 Melean Absolum Limited, 2017, 8

3. HISTORY OF SETTLEMENT

The earliest human occupation of the Waitākere Ranges dates back around 800 years, with oral traditions referring to the first settlers as Tino o Maruiwi, descendants of Chief Maruiwi. When the people of Toi came to occupy the Waitemātā area in the 13th century, the Tino o Maruiwi peoples were pushed into the Ranges. They were joined by a number of Toi refugees (now referring to themselves at Ngaoho) and these peoples integrated to become the Kawerau tribe.¹ The tribe primarily settled in the Te Henga/ Bethells Beach area and the Waitākere River Valley – a strategic location midway between the Manukau and Kaipara Harbours which had abundant food resources.²

Other iwi have also had close ancestral ties to the area and to Te Kawerau ā Maki. They include Ngāti Whātua, an Auckland, Kaipara and Northland-based iwi that has resided in the Waitākere Ranges area, and made use of its resources, for about 400 years.³

Throughout the past 400 years, there have been numerous conquests and battles between Te Kawerau ā Maki, Ngāti Whātua and Ngāpuhi (who at times took refuge in the Waitākere Ranges). These inter-tribal skirmishes resulted in shifting tribal boundaries and, for some time, Te Kawerau ā Maki's alienation from the land. However, despite this, the iwi has maintained a strong relationship with the Waitākere Ranges. This is well acknowledged and is reflected in the traditional place names gifted to the land and the sea in the area.⁴

The Waitākere area takes its name from a significant flat rock feature called 'Waitakere' which is located at Te Henga. The name means 'wave swept rock' referring to the relentless seas that sweep over it.⁵ From this rock came the general name for the Te Kawerau ā Maki settlement in the lower Waitākere river valley and one of the names for the river itself.⁶

Both Te Kawerau ā Maki and Ngāti Whātua are mana whenua of the Waitākere Ranges Heritage Area and this is expressly recognised in the Heritage Act.⁷

A spotlight on the Te Kawerau ā Maki marae

Te Kawerau ā Maki have long sought to develop a marae in Te Henga, the traditional heartland of the iwi. Discussions started in the mid-1990s with the former Waitākere City Council, and in 1998 the two parties signed a memorandum of partnership, which included the objective of establishing a marae. Throughout the next decade discussions continued and in 2009 the Council purchased a block of land at 240A Bethells Road. Although there had been earlier proposals to vest the land in Te Kawerau ā Maki under the Te Ture Whenua Māori Act 1993, the land was instead classified as Local Purpose (marae papakāinga) Reserve under the Reserves Act 1977. The land was offered to Te Kawerau ā Maki as a ground lease only.⁸ As there had been earlier promises to gift the land, the lease was rejected.

In 2018, following recommendations of the Waitākere Ranges Local Board, a motion was approved by the Finance and Performance Committee to transfer the land to Te Kawerau ā Maki.⁹ We understand this process is still underway with a few issues yet to be resolved. Once developed, the marae will signify the importance of Te Henga as "essentially the very heart of Te Kawerau ā Maki."¹⁰

Under pressure from the early European settlers, the Crown began to buy up land in the Waitākere Ranges in the early to mid 1850s. By December 1856, the Crown had purchased most of the western Ranges, leaving Te Kawerau ā Maki with only two reserves: Waitākerei (the name used for the area around the mouth of the



Dune restoration at Te Henga/Bethells

Waitākere River) (1180ha) and Piha (725ha). The Crown then began dividing the land up into civil parishes and districts for sale to new settlers. These districts were surveyed and subdivided into allotments suitable for immigrant farmers, usually in grants of 20, 40 or 80 acres at a price of 10 shillings per acre. The resulting land orders were issued to new immigrants with a condition that the settler had to live in the province before a Crown Grant title was issued.¹¹ This was the beginning of colonial settlement and subdivision in the area.

A spotlight on Treaty settlement legislation

In February 2014, Te Kawerau ā Maki finalised its Treaty settlement with the Crown,¹² which has since been legislated in the Te Kawerau ā Maki Claims Settlement Act 2015 (Settlement Act).¹³ The Settlement Act includes a Crown apology to Te Kawerau ā Maki and cultural and financial redress.

The cultural redress includes statutory acknowledgements of Te Kawerau ā Maki's cultural, historical and traditional association with 11 west Auckland areas.¹⁴ The Settlement Act states that the Council, Environment Court and Heritage New Zealand Pouhere Taonga must have regard to these acknowledgments when determining if Te Kawerau ā Maki are affected persons or an interested party to proceedings relating to the statutory areas.¹⁵ It also states that the Council must forward to Te Kawerau ā Maki resource consents and matters lodged with the Environmental Protection Authority relevant to the statutory areas.¹⁶

The Settlement Act enables the governance entity of Te Kawerau ā Maki (or any member of the tribe) to cite the statutory acknowledgements as evidence of Te Kawerau ā Maki's association with any of the areas listed, in submissions concerning activities within, adjacent to or directly affecting any of the statutory areas.¹⁷ This is reflected in the Heritage Act which provides the opportunity for Te Kawerau ā Maki and Ngāti Whatua to form a 'deed of acknowledgement' with the Crown or Council to acknowledge their historical, traditional, cultural, or spiritual relationship with that land.¹⁸ While such deeds do not have any legal weight, they identify opportunities for contribution by tangata whenua to the management of the land concerned.¹⁹

The Settlement Act could inform a Heritage Area deed of acknowledgement for the statutory areas. However, to date, no deed of acknowledgement has been entered into with the Crown or Council. The closest the Settlement Act comes to such an agreement is that it creates a 'deed of recognition' for one statutory area – the Motutara Settlement Scenic Reserve and Goldie Bush Scenic Reserve – which obliges the Crown to consult with Te Kawerau ā Maki and have regard to their views with respect to the reserves.²⁰

With the arrival of European settlers in Auckland, so too came the need for timber to support the growing city. Early accounts recall the land being "entirely covered in luxuriant forest" with virgin kauri, northern rātā and rimu forest over most of the Ranges.²¹ However, the dawn of the commercial milling industry in 1840 was to see much of the native forest logged over the subsequent decades.²²

Between 1840 and 1925, kauri was logged extensively throughout the Ranges. During this time, there was little concern for the environment, and the value of the land was primarily seen as being the value of the timber. Pit-sawing onsite soon gave way to mass conveyance of logs by gravity to larger mills. Logs were transported to streams via bullock roads and skidded roads made from rows of smaller logs over which larger logs were carried. Driving dams were used to flush the logs down to lower holding dams. Any trees left standing were removed by later harvests or cleared to create pasture for farming.

Despite the Waitākere Ranges being covered in indigenous vegetation today, only a small proportion of the bush has not been modified by felling or burning. Small remnant patches of old-growth forest can still be found at Huia, Piha Domain and Cascades Kauri.²³ Loggers took the most favoured trees, which thinned the canopy and encouraged shorter trees and shrubs to grow. This created a cut-over canopy, with tall rātā and kauri interspersed with secondary plants such as tree ferns – creating a mosaic of different shapes and shades of green.

The forestry industry also influenced the pattern of European settlement within the Waitākere Ranges. This took the form of several small townships, with the largest early communities being located near to the timber mills. Large blocks of land were subsequently sold to farmer settlers and closer subdivision was undertaken to enable the building of holiday houses along the coasts.

On the west coast, the subdivision of Piha began with the Rayners. They were an entrepreneurial couple who were attracted to the Ranges, not for the stunning landscapes, but for the ability to exploit the area's abundant natural resources. In 1907 the Rayners, trading as the West Coast Timber Company, took over a timber milling business based in Karekare. In 1909, after stocks of kauri were depleted around Karekare, the mill was shifted to Piha. A small village began to form around the Piha mill with sleeping quarters, a cookhouse, school and village hall. In 1913, the Rayners leased the operation to the New Zealand Railways Department. However, by this time, most of the accessible kauri had been removed. After discovering this, the Railways Department also acquired the cutting rights to timber at Anawhata. However, due to the high wind speeds, much of this was found to be damaged. The unfavourable conditions, in addition to reduced quality and quantity of logs, meant the Department was operating at a loss. The mill was closed in 1921 and the buildings abandoned.²⁴

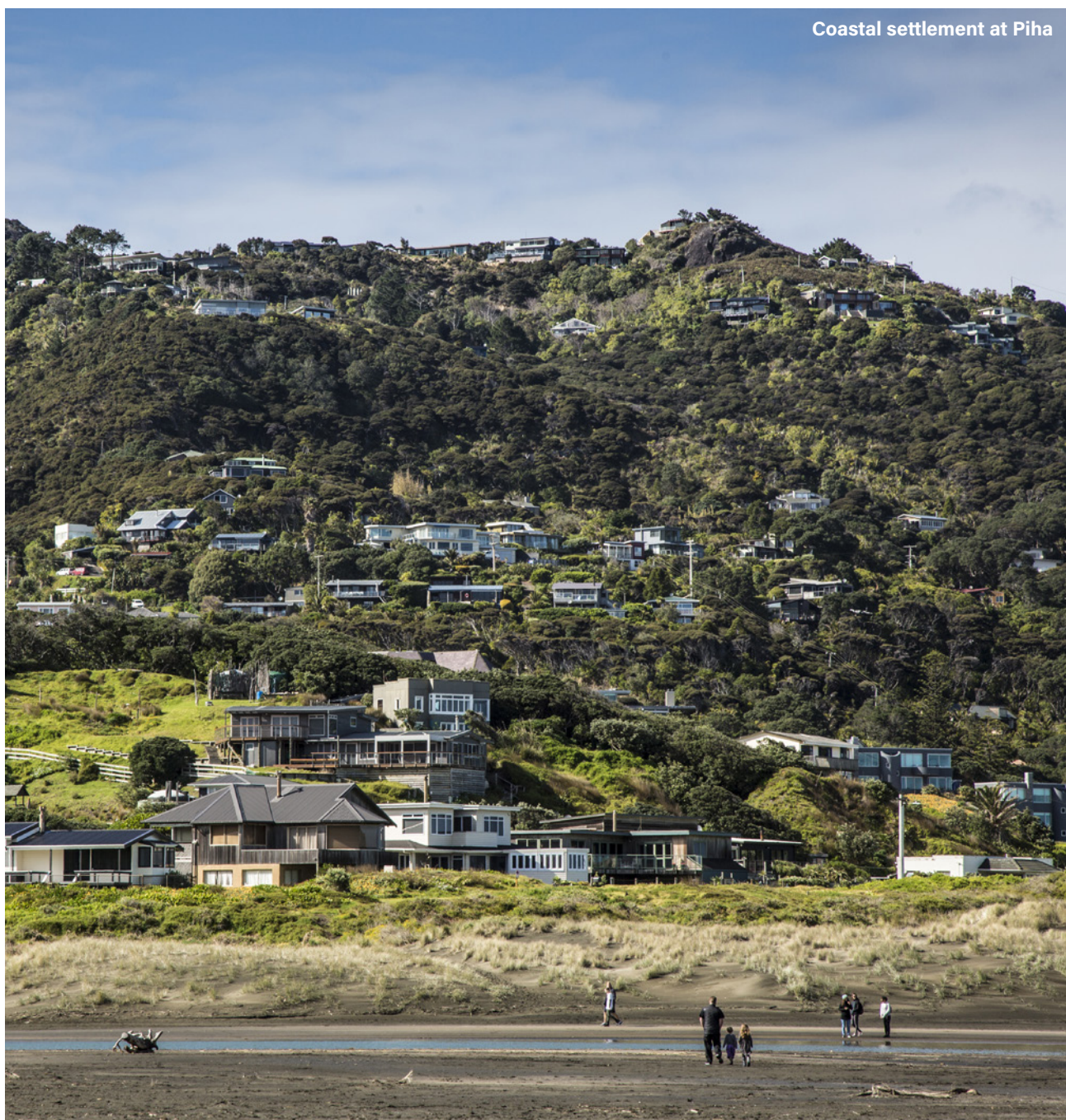
Following closure of the mill, there were a number of ambitious attempts to subdivide the land at Piha. One early attempt by Richard Kibblewhite was successful, resulting in the sale of a small number of sections, with

baches being constructed during the 1920s. However, it was not until the 1930s, after road access had been constructed by relief workers during the depression, that significant subdivision started to occur. The Rayner estate was subdivided and, with sections being sold off interest free with only small deposits required, there was no shortage of buyers. There were a number of other developments in Piha over the years, including the subdivision of North Piha during the 1940s. However, the area remains largely uncluttered – with the original subdivision from the 1930s still being visible.²⁵

Subdivision in Titirangi occurred much earlier, with the sale of 103 acres of land by Crown grant to John Kelly in 1848, which was the first legal sale in West Auckland.²⁶ Following the official government purchase of the Hikurangi block in 1853, more sales (ranging between 73 and 550 acres) were made in the area. By the 1880s,

Titirangi had a population of 140, most of whom worked in timber mills. Despite the land being marginal for farming, Titirangi became an area of cultivation – with farms stretching out to Green Bay. This was largely a result of a burgeoning Auckland population and the unavailability of land more suitable for farming (with Waikato Māori refusing to sell their land). Despite this development, large tracts of bushland remained between settlements, most of which is clustered around streams.

The history of settlement and cultivation in Titirangi ended in the early 1890s when Auckland City Council purchased most of the farms in the centre of the Ranges for water supply – allowing the bush to regenerate. Despite the havoc caused by kauri logging and subsequent farming in the area, the second growth forest is in a healthy state and still regenerating.



Coastal settlement at Piha

ENDNOTES

- 1 Taylor, undated, 8
- 2 Murdoch, undated, 31
- 3 Auckland Council, 2018, 10
- 4 Harvey and Harvey, 2006, 20
- 5 Harvey and Harvey, 2006, 32
- 6 Auckland Council, 2018
- 7 Waitākere Heritage Area Act 2008, Preamble, Sections 26, 29, 30 and 33
- 8 Waitākere Ranges Local Board, 2018
- 9 <https://ourauckland.aucklandcouncil.govt.nz/articles/media/council/2018/06/finance-and-performance-committee-approves-te-henga-land-transfer/>
- 10 Clent, 2018
- 11 Harvey and Harvey, 2006, 214
- 12 <https://www.govt.nz/treaty-settlement-documents/te-kawerau-a-maki/>
- 13 Ngāti Whatua have an agreement in principle to settle historical claims with the Crown but, as yet, have not signed a Treaty agreement with the Crown.
- 14 Te Kawerau a Maki Claims Settlement Act 2015, Schedule 1
- 15 Te Kawerau a Maki Claims Settlement Act 2015, Sections 30 to 32
- 16 Te Kawerau a Maki Claims Settlement Act 2015, Section 34
- 17 Te Kawerau a Maki Claims Settlement Act 2015, Section 35
- 18 Waitākere Ranges Heritage Area Act 2008, Section 29
- 19 Waitākere Ranges Heritage Area Act 2008, Sections 29 and 30
- 20 Te Kawerau a Maki Claims Settlement Act 2015, Section 36 and Schedule 1
- 21 Harvey and Harvey, 2006, 67
- 22 Taylor, undated, 9
- 23 Harvey and Harvey, 2006, 69
- 24 Harvey and Harvey, 2006, 247 to 251
- 25 Harvey and Harvey, 2006, 250 to 254
- 26 Harvey and Harvey, 2006, 222

4. PRESSURES ON THE WAITĀKERE RANGES LANDSCAPE

"Subdivision was the threat when the legislation passed, but there are now other pressures such as kauri dieback, pests, tourism and recreation."

Today, there remain a wide range of pressures on the Waitākere Ranges including kauri dieback, weeds and pests, population increases and subdivision and development.

4.1 Kauri dieback

The kauri tree is particularly significant in the Waitākere Ranges Regional Park forests.¹ It forms the green backdrop to the city and is a keystone species, with at least 17 other species relying on it for their survival.²

As described in Chapter 3, kauri was heavily logged from the 1830s onwards. As a result, there are only a few small un-milled areas remaining, which feature older kauri.³ Notwithstanding this historical onslaught, the Waitākere Ranges still contain approximately 2,571ha of dense kauri forest as well as many small stands and extensive areas containing individual trees.⁴ The Ranges are also home to some of the largest kauri in the Auckland region.⁵

In 2006, kauri trees in the Regional Park were first identified as being affected by a soil and water borne pathogen which causes kauri dieback.⁶ The pathogen is a 'water mould' that damages kauri tree root systems.⁷ It becomes active when resting mould spores germinate and produce zoospores which are released by water (usually rain). The zoospores swim (propelled by their tails) through moisture in the soil towards a kauri tree's roots, where they attach themselves. Once the pathogen has taken hold, it produces a tubular structure which infects the root and spreads to attack the tissue at the base of the kauri's trunk. Eventually this stops the tree from being able to transport water and nutrients

to the canopy, killing the tree. Zoospores are released from infected trees and swim through the soil to infect other kauri in the vicinity.⁸ Even if no kauri are present, the pathogen can survive in the soil for many years. There is no known cure for kauri dieback and the pathogen kills most, if not all, of the kauri it infects.⁹

Initial signs of infection can be a yellowing of the leaves as branches are staved. Trunk lesions can also occur, although not all infected trees show these. It can take years (possibly decades) for the dieback symptoms to appear in mature trees, although the disease can show up within weeks in seedlings.¹⁰

The pathogen poses a threat to kauri both at the individual and population levels.¹¹ The recorded distribution of kauri dieback, relative to the kauri area within the Regional Park, has more than doubled from 7.9 per cent infected and a further 2.7 per cent possibly infected in 2011 to 18.95 per cent infected and a further 4.65 per cent possibly infected in 2016.¹² As at 2017, of the distinct areas of kauri forest within the Regional Park over five hectares in size, 58.3 per cent were exhibiting symptoms of dieback.¹³

Kauri dieback disease is thought to be spread almost exclusively by soil disturbance and this can be via tiny amounts of mud or soil carried on people or animals. In the Waitākere Ranges, people are one of the biggest causes of soil disturbance. Analysis of kauri health in the Regional Park, undertaken in 2011, showed a higher prevalence of kauri dieback along the track network.¹⁴ As such, management of the disease has resulted in the full closure of a number of tracks within the Regional Park. This has resulted in knock-on effects, with people heading to other areas in the Ranges, and putting more pressure on those landscapes. One interviewee mentioned that Te Henga/Bethells Beach, in particular, was overrun with visitors in a way that had never previously been observed.



Stand of young kauri

A spotlight on the Te Kawerau ā Maki rāhui

Te Kawerau ā Maki iwi have played a paramount role in protecting the Waitākere Ranges bushland from kauri dieback. In 2017, the iwi declared a rāhui (customary prohibition) over the Waitākere Ranges to protect the bush from kauri dieback. The purpose of the rāhui is to quarantine the forest and enable the environment to recuperate and regenerate without the presence and impacts of humans. For Te Kawerau ā Maki, who are the mana whenua of Waitākere, the death of the forest is an existential threat.¹⁵

The rāhui covers the entirety of the Heritage Area, extending further than the track closures originally put in place by Auckland Council. Since it was declared, central government and Auckland Council have subsequently enforced the rāhui with official track closures and the use of a Controlled Area Notice. Auckland Council now work alongside Te Kawerau ā Maki when determining whether upgraded tracks have reached the required standard and can be reopened. Tracks cannot be reopened without the agreement of iwi.

"Using the [Heritage Act] legislation, in partnership with iwi, has made it quite hard for people to argue about the need to close the tracks."

Kauri dieback is listed as an unwanted organism under the Biosecurity Act 1993. This creates a statutory framework for the management of the disease. Since 2007, Auckland Council has participated in a multi-agency national kauri dieback management programme in conjunction with mana whenua, the Ministry for Primary Industries, the Department of Conservation (DOC) and other regional councils (the Kauri Dieback Governance Group).¹⁶ Programme partners provide education and awareness tools to communities as well as install cleaning stations and signage across kauri forest areas. In June 2019, the Council released its Track Reopening Work Programme. All of the tracks have been approved by Te Kawerau ā Maki and the framework seeks to prioritise the reopening of tracks that are of a standard to protect and support forest health, as well as those that provide a range of recreational opportunities.¹⁷

"The Heritage Act has enabled the Council to step in assertively and take action in response to kauri dieback. It provides the impetus to step in, as kauri in the Ranges are more precious than elsewhere."



A spotlight on the proposed National (Kauri Dieback) Pest Management Plan

In 2018, the Kauri Dieback Governance Group made a proposal to establish a National (Kauri Dieback) Pest Management Plan (Kauri Dieback Plan), the most rigorous pest management regulation possible under the Biosecurity Act 1993.

The primary purpose of the Kauri Dieback Plan is to “reduce the harmful effects of *Phytophthora agathidicida* (PA) by preventing the spread of PA and minimising its impacts on New Zealand’s kauri forests, our culture, our communities and economy.”¹⁸

The proposed Kauri Dieback Plan contains a set of rules relating to how kauri forests are to be used and managed. These include restrictions on the movement of plant material and soil; farm stock exclusion and prohibitions on the release of animals; an obligation to clean items and use hygiene stations as well as a requirement that tracks open to the public be of a certain standard; and the ability to declare an area a kauri protection area. It is proposed that contravention of the rules be an offence under the Biosecurity Act, with the preferred management agency responsible for administering the Plan being either a Crown Company or government department.¹⁹

The Kauri Dieback Plan sets out the actions that it proposes regional and territorial councils will take to implement it.²⁰ These include council leadership around hygiene protocols and actively managing publicly owned lands in accordance with the Plan. With respect to regulations, the Plan proposes that regional councils include rules to ensure that consent conditions provide for the effective protection of kauri from dieback, and undertake associated compliance monitoring and reporting, and that local councils regulate earthworks.

The regional land disturbance chapter of the Auckland Unitary Plan (which applies to the Waitākere Ranges) already includes a standard applicable to permitted, controlled or restricted discretionary land disturbance activities which requires that vehicle and equipment hygiene procedures are adopted when working in the vicinity of a kauri tree.²¹ The standard has an assessment criterion for discretionary land disturbance activities which evaluates the extent to which appropriate methods are used to prevent the spread of kauri dieback disease.²²

In addition, the vegetation management and biodiversity chapter of the Auckland Unitary Plan contains policies which seek to:

Enable activities which enhance the ecological integrity and functioning of areas of vegetation, including for biosecurity, safety and pest management and to control kauri dieback;²³ and

Recognise and provide for the management and control of kauri dieback as a means of maintaining indigenous biodiversity.²⁴

The chapter also includes a standard applicable to permitted, controlled or restricted discretionary vegetation and biodiversity management activities which requires that kauri deadwood material be retained on site or disposed of at an approved facility.²⁵ There is a matter of discretion for restricted discretionary activities that assesses the extent to which it is appropriate to require measures to contain and control plant pathogens and diseases including kauri die back.²⁶

When exercising a pest management power or carrying out a pest management function under the Biosecurity Act, ‘particular regard’ must be had to the purpose and objectives of the Heritage Act.²⁷ Accordingly, when implementing the Kauri Dieback Plan, Auckland Council must consider whether its decisions will ensure the protection of the landscapes of the Heritage Area. However, it is not compelled to ensure absolute compliance with the Heritage Act. Having said that, it is unlikely that any Council decision or plan rules relating to kauri dieback management would be adverse to landscapes within the Heritage Area, as the biosecurity proposals seek to protect kauri forests and restrict land disturbance. That is particularly the case given the Kauri Dieback Plan notes it is inappropriate to require the removal of infected host plants or full closure of kauri forests.²⁸ This is on the grounds of public acceptability, alienation of New Zealanders from the environment as well as lack of scientific support.

Consultation on the proposed Kauri Dieback Plan was completed in early 2019. It must now proceed through the five steps set out in the Biosecurity Act before the Minister can recommend to the Governor-General that an Order in Council be made to give the plan legal force.²⁹

With no known cure for kauri dieback, the loss of the kauri forest ecosystem is the biggest threat presently facing the Heritage Area.³⁰ Due to its role as an ‘ecosystem engineer’,³¹ the loss of kauri would have a cascade effect on the plants and animals that depend on the trees. These include orchids and ferns that only grow under kauri and the nationally vulnerable long-tailed bat whose preferred roosts are mature kauri trees.³² Changes to plant community structure can lead to increased soil erosion and changes to hydrology. These outcomes have the potential to dramatically change the landscape characteristics of the Heritage Area.

A spotlight on myrtle rust

Myrtle rust is a fungal disease that attacks native plants like pōhutukawa, mānuka and rātā. It was found in West Auckland in November 2017 and, in addition to kauri dieback, could be devastating for the Heritage Area.³³ The risk of the loss of iconic trees such as pōhutukawa, and the potential threat to revegetation projects which use mānuka and kānuka as primary replanting species to re-establish forest ecosystems, is huge.³⁴ The impacts of myrtle rust within the Heritage Area are expected to be reported on in the Council's next monitoring report in 2023. However, to date, it does not seem to be causing many issues.³⁵

Notwithstanding a noticeable increase in the incidence of kauri dieback in some of the bush living landscape units of the Heritage Area, particularly Titirangi and Huia,³⁶ fortunately dieback has not (as at 2017) changed the landscape character of areas where it has struck.³⁷ Whether this remains the case will be reported on in the Council's next round of Heritage Area monitoring in 2023.

4.2 Weeds and pests

"The weed problem in the whole of the Waitākere Ranges is at explosion point."

The Waitākere Ranges is heavily infested with pest plants.³⁸ The pattern of weed distribution is closely

aligned with human habitat – radiating out from dwellings and, to a lesser degree, walking tracks. As such, the pattern of development in the Ranges with an increasing abundance of dwellings, increases the challenge of tackling the problem.

Pest plant and animal species are a major threat to the terrestrial and aquatic ecosystems of the Heritage Area and can negatively impact on the Heritage Area objectives.³⁹ Although there has been considerable investment in the control of kauri dieback, as described above, this has not been the case with the control of weed infestation.

"In some places weeds have taken over and there is hardly anything native under the canopy, no seedlings, nothing. This may be the last generation of the canopy. The Ranges may look very different in the future."

Over 180 of the 272 declared pest plants in the Auckland Regional Pest Management Strategy are established in the Heritage Area. Eradication of all pest plants by the Council is not affordable, and so the Council has adopted a strategic pest plant management approach which prioritises certain projects. One concern we heard was that the Regional Pest Management Plan seeks to protect the pristine areas and fails to address other weed infested areas. This can be observed in Figure 2 which identifies the pest plant programmes undertaken between 2013 and 2018, most of which are concentrated within the Regional Park. However, it should be noted that the figure does not include private pest management efforts that individuals may be undertaking on their own properties.



Coastal settlement at Te Henga/Bethells

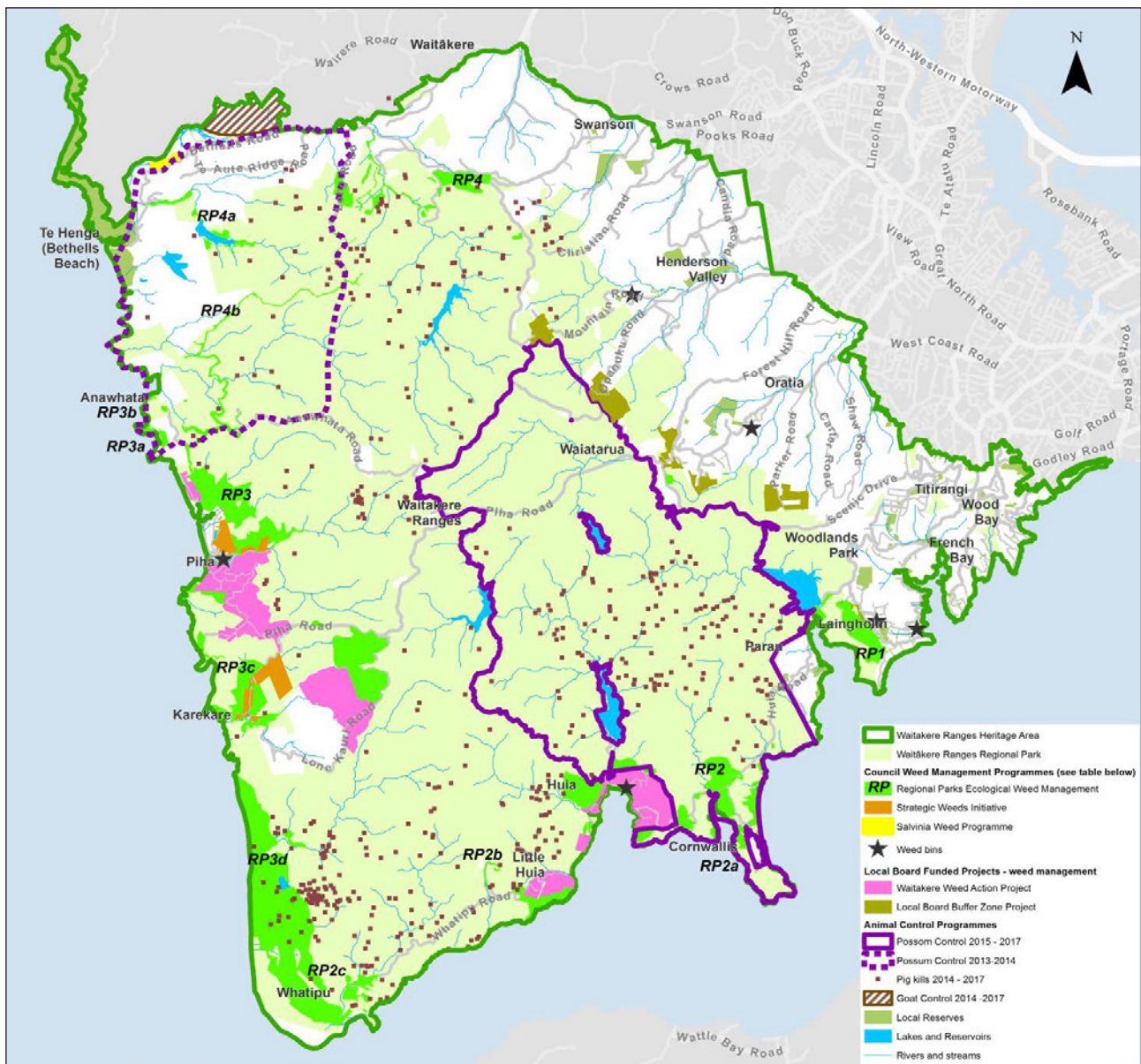


Figure 2: Weed and animal control programmes in the Waitākere Ranges ⁴⁰

In response to these concerns, the Waitākere Ranges Strategic Weed Management Plan was developed by the Waitākere Ranges Local Board in 2015, to address the curtailment of weeds on private property within the Heritage Area. The orange and pink shading on Figure 2 indicates some of the areas where this is occurring.

The Strategic Weed Management Plan sets out a strategic approach to the management of weeds and a coordinated framework for the pest plant and animal programmes undertaken by Council and community groups. This feeds into the Regional Parks Management Plan, which must be prepared by Auckland Council to give effect to the principles of the Heritage Act, and requires many areas to be protected from the impacts of weeds.

The 2020 decision of *Coney v Auckland Council*⁴¹ has resulted in stronger pest management controls for the Heritage Area in the Regional Pest Management Strategy. As described in the spotlight below, this is likely to make a substantial difference to the future control of pest plants in the Heritage Area.



A spotlight on the *Coney v Auckland Council* Environment Court decision

*Coney v Auckland Council*⁴² concerned the appeal of a decision made by Auckland Council on the terrestrial aspects of the Regional Pest Management Plan. The appeal, brought by local individuals who carry out volunteer pest management work around the Auckland region, was on the basis that the Regional Pest Management Plan would not sufficiently combat certain pest plants in the Heritage Area. In particular, the appellants sought that particular regard be given to the Heritage Area, as required by the Heritage Act, and that stronger controls for plant and animal pests be provided.

The appeal was settled by consent, with the parties agreeing to a suite of controls which gave special provision to the Heritage Area by, *inter alia*, separately addressing the Heritage Area under the 'programmes' section of the plan; identifying pest species for which special regard is to be had within the Heritage Area; extending a buffer area around the Heritage Area;

and aiming for a two per cent residual trap catch for possums and zero pig density in an attempt to reduce the spread of kauri dieback in the Waitākere Ranges, if possible.

The inclusion of the buffer is significant. It means that for a number of pest plant species, Auckland Council is now required to undertake pest management both within the park, and within a 500m buffer zone surrounding the park. For other species, the Regional Pest Management Plan includes rules that require pest plants to be managed by landowners in those buffer areas. These buffer rules will involve substantial community engagement to encourage landowners to recognise and voluntarily remove pest plants, supported by systematic rule enforcement when required.⁴³

The decision has the effect of requiring pest control over almost all the Waitākere Ranges Heritage Area (see Figure 3 which shows where the parkland and buffer rules apply).



Bush living in Titirangi

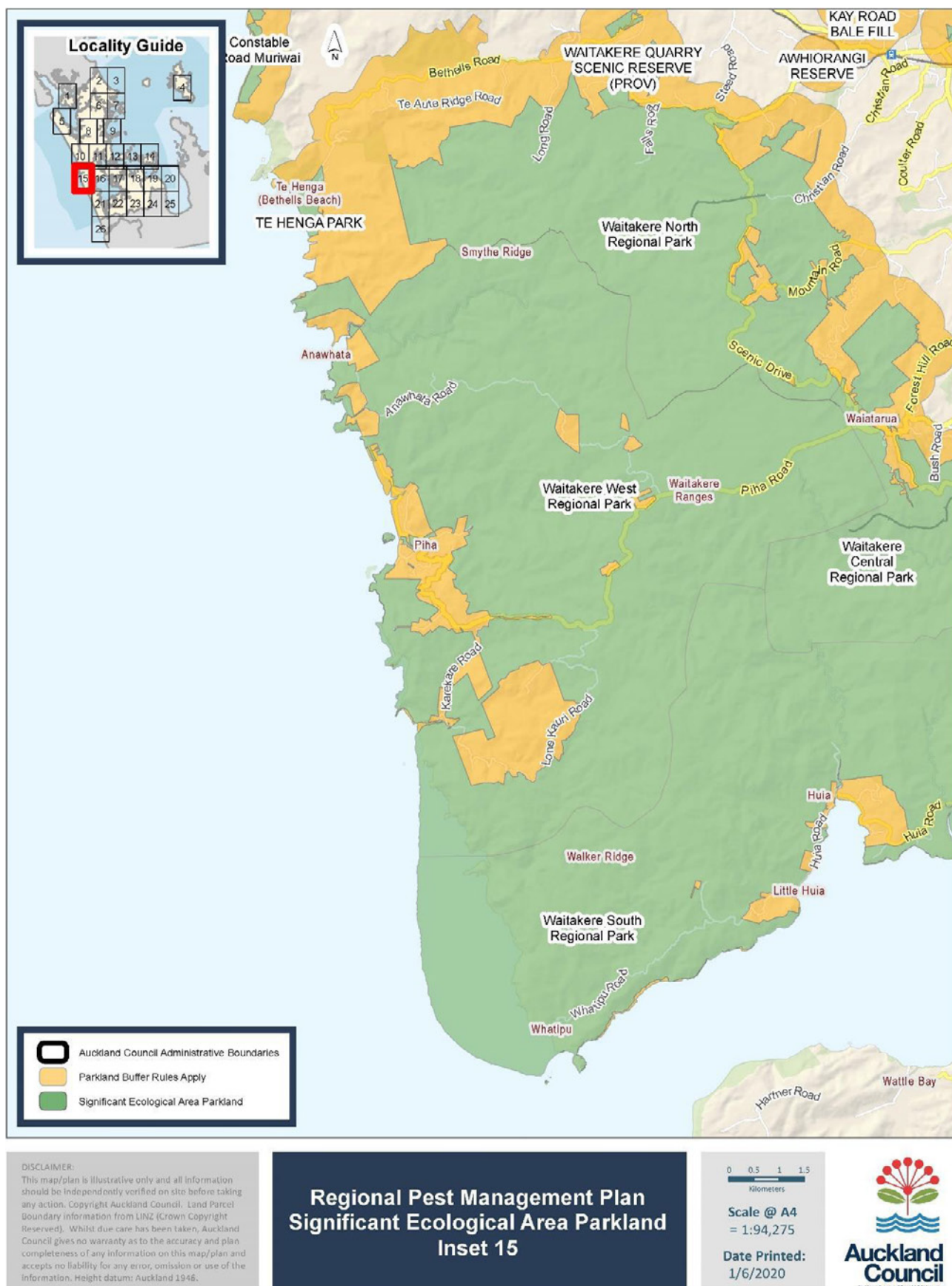


Figure 3: Areas where parkland and buffer rules apply under the Regional Pest Management Plan⁴⁴

4.3 Population increases

The population of the Waitākere Ranges has grown steadily over the years. In 2017, the Waitākere Ranges Local Board area population was 51,650. By 2051 this is expected to increase by 4,350 to reach 56,000 people.⁴⁵ This growth is substantially less than that for the rest of Auckland.⁴⁶ However, an increase in population necessitates additional housing and infrastructure, both of which can significantly impact the landscapes of the Heritage Area. In 2018, the population that resided within the Heritage Area itself was over 20,000.

In addition to population increase, the Waitākere Ranges is experiencing more tourism from a growing Auckland metropolitan area and (prior to Covid-19) from overseas. The Ranges are a major visitor attraction within the Auckland region, with the Regional Park containing over 140 tracks covering approximately 250km.⁴⁷ As described earlier, many of these tracks have been closed due to kauri dieback, creating pressures on those which remain open.

“The West gets over a million visitors per year. It is an inevitable outcome: if you protect an area and its landscape values, it creates an attractive place for people to visit. But these visitors then impact on the landscapes they come to see, creating a whole new set of pressures.”

Visitor numbers doubled in the 10 years between 2000 and 2010 and this trend is likely to continue due to the close proximity of the Auckland metropolitan area to the Ranges.⁴⁸ Parts of the Regional Park are under pressure from increasing recreational activity, including commercial activities related to tourism, film production and sporting events.⁴⁹ Visitors to the Heritage Area, and the infrastructure required to cater for them, can have adverse impacts on landscape qualities and natural scenic beauty in a number of ways.⁵⁰ These include the potential spread of kauri dieback, unmanaged activities, the spread of seeds from weeds, fires, off-leash dogs, increased infrastructure and freedom camping.⁵¹

4.4 Subdivision and development

A corollary to population growth is an increase in subdivision and development. If not appropriately designed and managed, subdivision and development with associated land disturbance and vegetation removal activities, will pose a threat to the landscape character of the Heritage Area. This was a key concern leading to the development of the Heritage Act in 2008.

To date, this threat has not eventuated. Since 2000, the number of subdivision, land use and building consents sought within the Heritage Area has been declining, with a significant drop off following the enactment of the Heritage Act in 2008 (see Figure 4).



Period	Subdivision consents granted (all types)	Land use consents granted (all types)	Building consents (all types)
April 2000 – March 2004	150	1643	No data available
April 2004 – March 2008	167	1387	1703
April 2008 – March 2012	70	1155	1209
April 2012 – March 2017	36	530	270

Figure 4: Subdivision, land use and building consent applications as an indicator of development pressures 2000-2017⁵²

Resource consents for activities on sensitive ridgelines, which would likely give rise to the largest visual effects in the Heritage Area, have also declined from 87 consents during the 2008-2012 period to 37 during the 2013-2017 period.⁵³

These statistics suggest that the Heritage Act has served to slow subdivision and development pressure within the Heritage Area. However, its actual effect is difficult to ascertain given external influences, including most significantly, the 2009 global financial crisis which stymied development and growth throughout New Zealand.

"The high growth that has occurred in Auckland makes what was achieved in the Waitākere Ranges even more impressive. The Act has really held the line in terms of subdivision."

Pleasingly, landscape assessments of the Heritage Area indicate that, overall, there have been only minor or very

minor negative changes to the landscape character and heritage features of the Heritage Area as a result of subdivision and development during the first decade of the Heritage Act.⁵⁴ However, the outcomes provided for under the new Auckland Unitary Plan have yet to be seen. While the Plan decreases (from that provided for in the legacy district plan) the total development capacity from existing and potential subdivision within the bush living, large lot and coastal zones, it significantly increases that capacity in the foothills zones (see Figure 5).⁵⁵ This is discussed further in Chapter 7 below.

Ongoing monitoring of resource and subdivision consents will be required to ensure that the outcomes currently being achieved for landscapes within the Heritage Area are maintained.⁵⁶ If monitoring identifies that the Auckland Unitary Plan is resulting in adverse effects on landscape character, the plan would not be giving effect to the Heritage Act as required.

	Existing vacant lots allowing a dwelling		New potential vacant lots allowing a dwelling		Total development capacity from existing and potential subdivision	
	Waitākere City District Plan	Auckland Unitary Plan	Waitākere City District Plan	Auckland Unitary Plan	Waitākere City District Plan	Auckland Unitary Plan
Bush living in Waitākere City District Plan or Single House or Large Lot zones in Auckland Unitary Plan	575	300	386	301	961	601
Coastal Villages zone in Waitākere City District Plan or Rural and Coastal Settlements zone in Auckland Unitary Plan	108	82	57	6	165	88
Foothill zone in the Waitākere City District Plan or Waitākere Ranges and Waitākere Foothills zones in Auckland Unitary Plan	250	525	249	352	499	877

Figure 5: Total development capacity from existing and potential subdivision within the bush living, large lot and coastal zones⁵⁷

A spotlight on potable water infrastructure

From early on in the development of the Auckland region, the Waitākere Ranges were recognised as an important water catchment area. As described in the Management Plan, the region's first gravitational supply dam was built at Nihotupu in 1902, with a number of other dams being constructed over the 70 years that followed. Watercare Services Limited now has a licence over 6,619ha of the inner area of the park that includes five dams and their catchments. The dams contribute about 20 per cent of Auckland's metropolitan potable water supply.⁵⁸

Water from the dams is processed at the Huia Water Treatment Plant near Titirangi. The plant is responsible for providing approximately 20 per cent of Auckland's water, primarily in the western and northern suburbs. As the Huia Plant is nearly at the end of its economic life, Watercare is currently planning a significant replacement and upgrade – consisting of a new water treatment plant located on a 4.2ha parcel of land adjacent to the existing plant and two storage reservoirs.⁵⁹

Although the Huia land has been designated for water supply purposes in one form or another since 1972,⁶⁰ the new plant will require removal of regenerating native bush within a significant natural area.⁶¹ This has caused considerable outrage among local residents. However, as the Environment Court has recently confirmed:⁶²

Given the regional controls, particularly relating to the SEA [Significant Ecological Area] covering most of the site, almost any application would be subject

to significant scrutiny, resource consent applications and controls to meet the various purposes of the Regional Plan, the Waitākere Ranges Heritage Area Act 2008, and the various other objectives and policies of the Regional Plan.

The importance of the Waitākere Ranges to Auckland's water supply is also recognised in the Heritage Act with "the public water catchment and supply system, the operation, maintenance, and development of which serves the people of Auckland" being listed as a heritage feature for the area.⁶³ This is further emphasised in the Heritage Area objectives which require protection of "those features in the area that relate to its water catchment and supply functions".⁶⁴

Given that the Heritage Act also contains strong protections for the landscape and biodiversity of the Waitākere Ranges Heritage Area, these competing objectives will need to be balanced in making a decision on the Huia replacement plant.

Watercare's assessment of landscape and visual effects associated with the new plant are yet to be notified,⁶⁵ (although the regional consent application refers to a 10m landscape buffer around the perimeter of the project site).⁶⁶ Given that independent landscape assessments of the Heritage Area have concluded that at least some of the negative changes identified were associated with infrastructure development instigated by Auckland Council or its controlled organisations,⁶⁷ Watercare's operations, if not appropriately designed and constructed, could pose a threat to the landscape characteristics of the Heritage Area.



Recreation at Te Henga/Bethells



ENDNOTES

- 1 Auckland Regional Council, 2010, 84
- 2 Auckland Council, 2018, 61
- 3 Auckland Regional Council, 2010, 375
- 4 Auckland Council, 2017, 13
- 5 Auckland Regional Council, 2010, 378
- 6 Auckland Regional Council, 2010, 378
- 7 <https://www.kauridieback.co.nz/science-and-research/understanding-the-disease/>
- 8 <https://www.kauridieback.co.nz/what-is-kauri-dieback/>
- 9 Kauri Dieback Governance Group, 2019, 6
- 10 <https://www.kauridieback.co.nz/science-and-research/understanding-the-disease/>
- 11 Auckland Council, 2017, 5
- 12 Auckland Council, 2017, 4
- 13 Auckland Council, 2017, 4
- 14 Auckland Council, 2017 6
- 15 <http://waitakererahui.org.nz/the-rahui>
- 16 Auckland Council, 2019, 17
- 17 Auckland Council, 2019a
- 18 Kauri Dieback Governance Group, 2019, 9
- 19 Kauri Dieback Governance Group, 2019, 35
- 20 Kauri Dieback Governance Group, 2019, 37
- 21 Auckland Unitary Plan, E11 Land Disturbance – Regional, 6.2 General Standards (6)
- 22 Auckland Unitary Plan, E11 Land Disturbance – Regional, 8.2 Assessment criteria (1)(g)
- 23 Auckland Unitary Plan, E15 Vegetation management and biodiversity, Policies 15.3(5)
- 24 Auckland Unitary Plan, E15 Vegetation management and biodiversity, Policies 15.3(8)
- 25 Auckland Unitary Plan, E15 Vegetation management and biodiversity, E15.6.1 Standards (1)
- 26 Auckland Unitary Plan, E15 Vegetation management and biodiversity, E15.8.1 Matters of discretion (1)(a)(ii)
- 27 Waitākere Ranges Heritage Area Act 2008, Section 22
- 28 Kauri Dieback Governance Group, 2019, 11
- 29 Biosecurity Act 1993, Sections 61 to 66
- 30 Auckland Council, 2018, 13
- 31 Kauri Dieback Governance Group, 2019, 13
- 32 Auckland Council, 2018, 61
- 33 Auckland Council, 2018, 68
- 34 Auckland Council, 2018, 68
- 35 Auckland Council, 2018, 69
- 36 Melean Absolum Limited, 2017, Section 4.2.1
- 37 Melean Absolum Limited, 2017, Section 4.4.1
- 38 Waitākere Ranges Local Board, 2015, 11
- 39 Auckland Council, 2018, 34
- 40 Auckland Council, 2018, 51
- 41 *Coney v Auckland Council* [2020] NZEnvC 030
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- 43 Auckland Council, 2019, 177
- 44 Auckland Council, 2019, 406
- 45 Auckland Council, 2018a, 56
- 46 Auckland Council, 2018, 148
- 47 Auckland Regional Council, 2010, 376
- 48 Auckland Regional Council, 2010, 377
- 49 Auckland Regional Council, 2010, 377
- 50 Auckland Council, 2018, 125
- 51 Auckland Council, 2018, 125 to 131
- 52 Auckland Council, 2018, 137
- 53 Auckland Council, 2018, 141
- 54 Melean Absolum Limited, 2017, 31; Melean Absolum Limited, 2013, 29
- 55 Auckland Council, 2018, 145 to 146
- 56 Auckland Council, 2018, 147
- 57 Auckland Council, 2018, 145 to 146
- 58 <https://www.watercare.co.nz/Water-and-wastewater/Where-your-water-comes-from/Dams>
- 59 *Titirangi Protection Group Inc v Watercare Services Ltd* [2018] NZHC 1026, [9] to [11]
- 60 *Titirangi Protection Group Inc v Watercare Services Ltd* [2018] NZHC 1026, [14] to [15]
- 61 *Titirangi Protection Group Inc v Watercare Services Ltd* [2017] NZEnvC 181, [8](b)
- 62 *Titirangi Protection Group Inc v Watercare Services Ltd* [2017] NZEnvC 181, [8](e)
- 63 Waitākere Ranges Heritage Area Act 2008, Section 7(n)
- 64 Waitākere Ranges Heritage Area Act 2008, Section 8(k)
- 65 These effects will be addressed in Watercare's Outline Plan of Works yet to be submitted to Council. Watercare, 2019, 4 to 5
- 66 Watercare Services, 2019, 68 and 69
- 67 Melean Absolum Limited, 2017, 31

5. RESOURCE MANAGEMENT ACT FRAMEWORK

The Resource Management Act 1991 (RMA) is the main piece of legislation in New Zealand that sets out how the environment should be managed. Previously an 'overall broad judgment' approach was adopted in interpreting the sustainable management purpose of the RMA. But the Supreme Court in *Environmental Defence Society v New Zealand King Salmon* rejected this approach and determined that the definition of sustainable management must be read as an integrated whole.¹ Although the Act does not create primacy for environmental protection (through the setting of environmental bottom lines), other policy and planning documents developed under it may. In that case, the New Zealand Coastal Policy Statement 2010 (NZCPS) set strict bottom lines by requiring the avoidance of adverse effects on Outstanding Natural Landscapes (ONLs) in the coastal environment.

The reasoning of *Environmental Defence Society v New Zealand King Salmon* has been subsequently applied in a number of cases. Of particular importance is *RJ Davidson Family Trust v Marlborough District Council*, which concerned an application for resource consent. In that case, the Court of Appeal held that if the planning document does not clearly indicate whether a resource consent should be granted or refused, then reference to the purpose and principles of the Act may be appropriate. This enables an overall broad judgement to be applied, which may result in economic benefits outweighing provisions seeking environmental protection. The case highlights the importance of plans having clear and directive provisions in them.

Sections 6, 7 and 8 of the RMA supplement the sustainable management purpose contained in section

5 and identify matters that are of special significance for resource management.

Matters of national importance are listed in section 6 and decision-makers must 'recognise and provide' for them. ONLs are identified under section 6(b) and their protection is a matter of national importance. Other matters of national importance include protection of the natural character of the coastal environment, wetlands, lakes and rivers and their margins (section 6(a)); protection of significant indigenous vegetation (section 6(c)); the relationship of Māori and their culture with taonga (section 6(e)); and the protection of historic heritage from inappropriate subdivision, use and development (section 6(f)).

An ONL must be both natural (meaning a product of nature) and outstanding. The factors that are recognised in identifying a landscape as outstanding include:²

- Natural science factors (geological, topographical, ecological, and dynamic components of the landscape)
- Aesthetic values
- Expressiveness (legibility)
- Transient values
- Whether the values are shared and recognised
- Value to tangata whenua
- Historical associations

Almost all the Ranges are subject to the ONL overlay in the Auckland Unitary Plan, with the exception of pockets of coastal settlement and some of the more developed foothills.



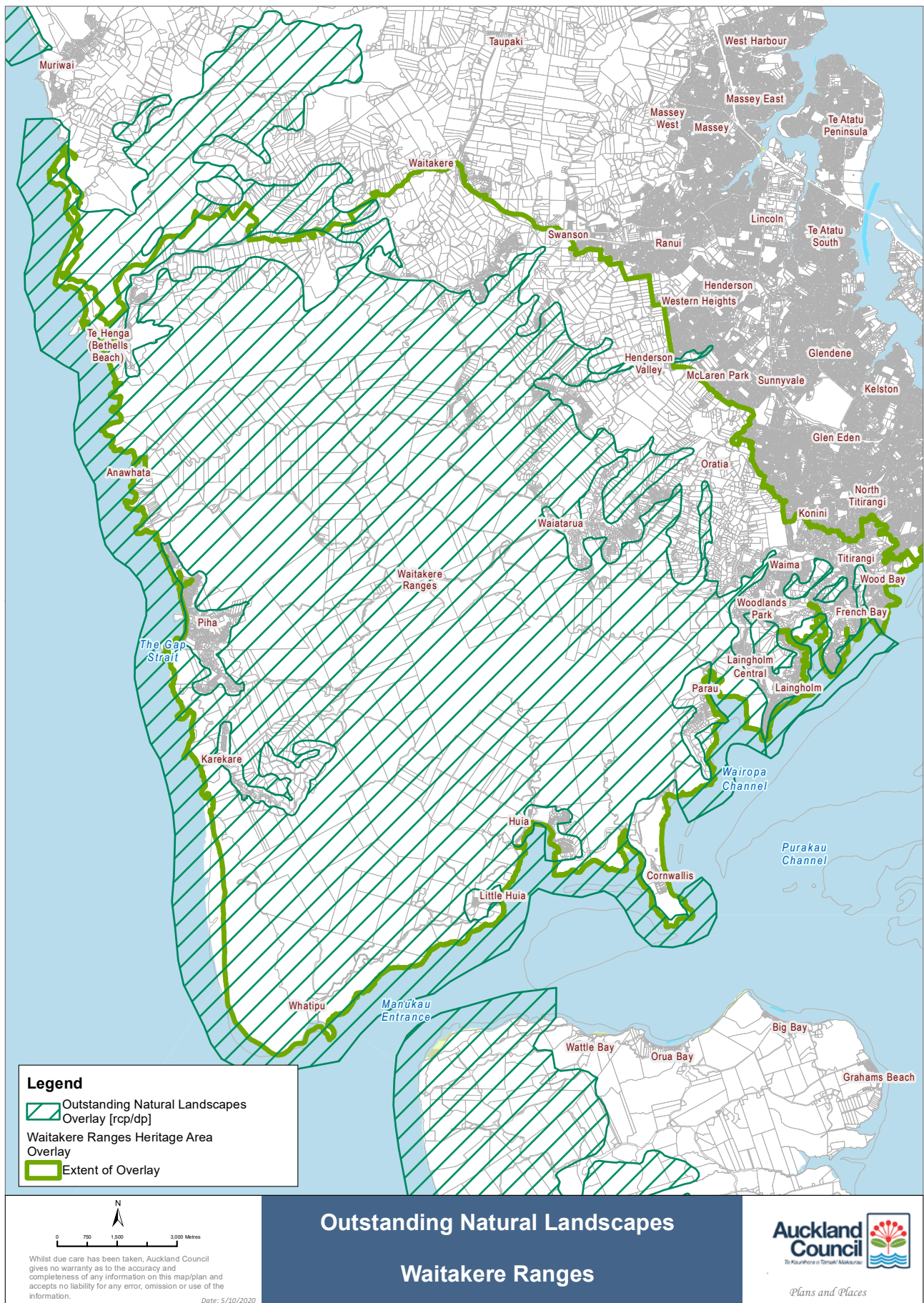


Figure 6: ONL mapping of the Waitākere Ranges Heritage Area

Under the RMA, ONLs must be protected from 'inappropriate' subdivision, use and development. This is not necessarily an absolute protection and allows the possibility of 'appropriate' development. What is inappropriate is heavily affected by context and so is determined on a case-by-case basis against the background of the landscape or feature that is to be preserved or protected.

Amenity landscapes, provided for under section 7(c) of the RMA, have lesser protection. Decision-makers are required to have 'particular regard to' the maintenance and enhancement of them. 'Amenity values' are defined in the RMA as "those natural or physical qualities and characteristics of an area that contribute to people's appreciation of its pleasantness, aesthetic coherence, and cultural and recreational attributes".³

Amenity landscapes encompass more than just visual elements and extend to sensory or other ways in which people enjoy their surroundings. As a result of the variability in assessments of amenity values, and their

site-specific nature, they are hard to include as overlays in planning documents. Instead, amenity values are generally recognised in objectives and policies and maintained through district plan standards and controls (such as those on subdivision and development). As such, a case-by-case assessment at the time of consent is required to identify whether amenity values are affected.

In order to provide for the protection of both ONLs and amenity values, as well as other resource management matters, a cascade of planning documents is created under the RMA, all of which must give effect to the provisions of the RMA (see Figure 7). These give substance to the RMA's purpose by identifying objectives, policies, rules and methods relating to land and resource use activities. The hierarchy is intended to move from the more general to the more specific both in content and locality, with each level required to 'give effect to' (meaning to implement) the level above it. These documents are discussed in Chapter 7.⁴

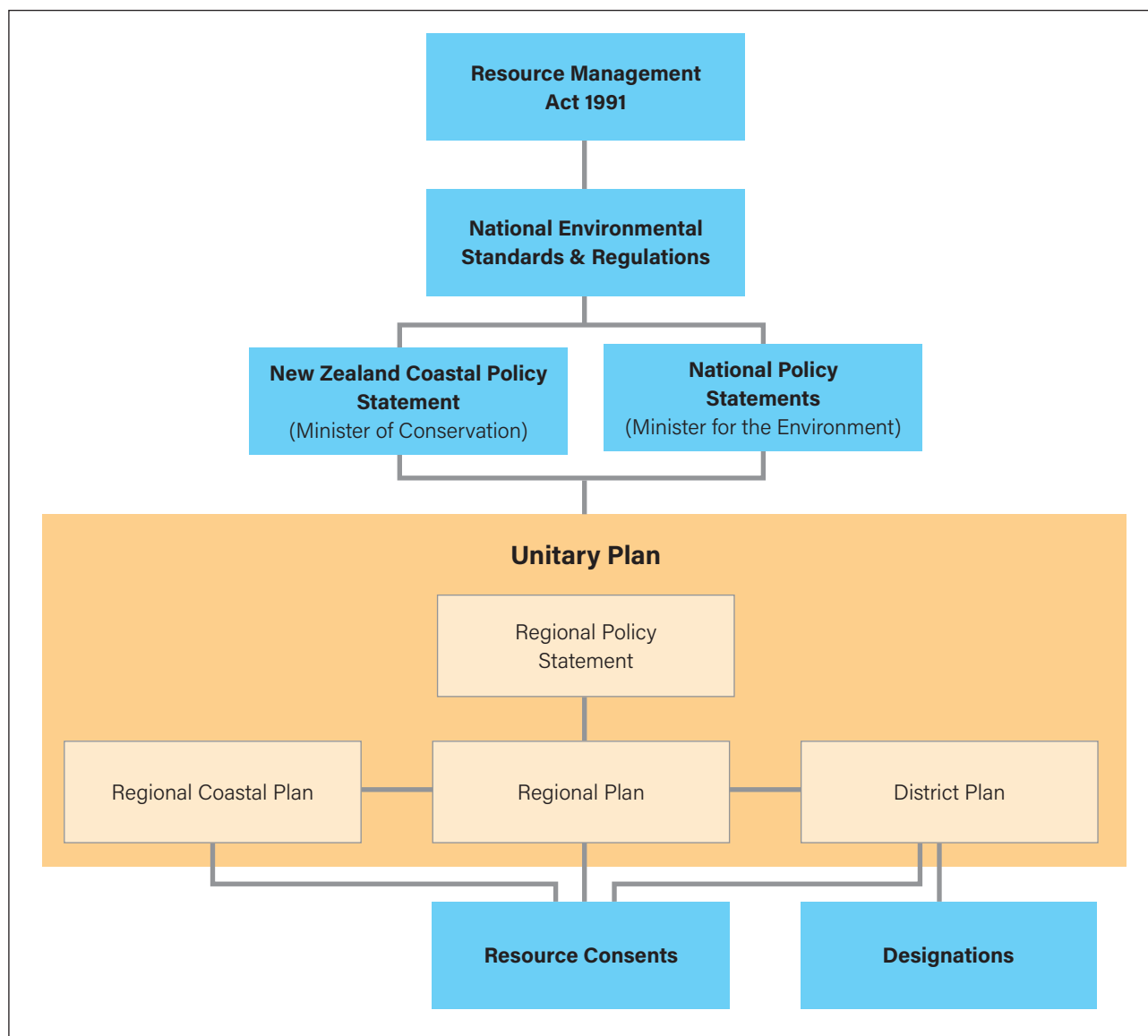


Figure 7: Hierarchy of RMA policies and plans (noting that the Auckland Unitary Plan as a combined plan is a combination of the bottom two layers of the hierarchy as shown in the shaded area)

Although the protection of ONLs has been identified as a matter of national significance in the RMA, there is no national policy statement on landscape. However, the NZCPS, which came into effect on 3 December 2010, applies to the areas of the Waitākere Ranges Heritage Area that are within the coastal environment. It requires that adverse effects of activities on ONLs or areas with outstanding natural character must be avoided. In all other areas within the coastal environment, significant adverse effects on natural character and landscapes must be avoided, and all other adverse effects avoided, remedied or mitigated.⁵

This provides a graduated scheme of protection and preservation of areas of natural character and landscape in the coastal environment, with a clear bottom line for areas identified as being outstanding. A similar bottom line is provided to protect threatened indigenous biodiversity and threatened or naturally rare ecosystems and vegetation types within the coastal environment.⁶

The Waitākere Ranges Heritage Act, explained further in Chapter 6, has the status of a national policy statement under the RMA. The provisions of the Heritage Act must therefore be given effect to in the Auckland Unitary Plan.



Coastal settlement overlooking dunes at Piha

ENDNOTES

- 1 *Environmental Defence Society v New Zealand King Salmon Company Ltd* [2014] NZSC 38, [24]
- 2 *Wakatipu Environmental Society Inc v Queenstown Lakes District Council* [2000] NZRMA 59 (EnvC)
- 3 Resource Management Act 1991, Section 2

- 4 In *Environmental Defence Society v New Zealand King Salmon*, the Supreme Court determined that 'give effect' is a strongly worded directive, meaning to implement.
- 5 New Zealand Coastal Policy Statement 2010, Policies 13 and 15
- 6 New Zealand Coastal Policy Statement, 2010, Policy 11(1)

6. WAITĀKERE RANGES HERITAGE AREA ACT 2008

6.1 Context

"Getting the Act through Parliament was only possible as there were circumstances that highlighted the need for change, strong local support, a Council that was prepared to back it and a favourable government. The need was unique and the circumstances were favourable."

The Heritage Act had its genesis in the 1970s following a proposal to develop a rubbish tip at Te Henga. The proposal was met with significant pushback from the community, with the Waitākere Ranges Protection Society leading the charge in protecting the Ranges. Although the proposal was eventually dropped, it highlighted the need to increase the environmental protection of the Ranges in the relevant planning instruments. Despite achieving that aim, the Waitākere Ranges Protection Society soon realised that, due to the political nature of town planning rules, the landscape was ultimately at the mercy of politics.

"Unfortunately, every five years the Scheme comes up for review and so the anti people come out of the woodwork and you have the whole thing on your plate again. Everything you have done could be chucked out and you're back to square one. This realisation underlined the absolute necessity to have legislation. Although legislation can be changed, it can only be changed with difficulty and someone has to promote a bill to change it."¹

In 1998, Go Waitākere, a pro-development political grouping with support in the Waitākere Ranges, campaigned on the basis of restricting the 'extreme' development controls in the district plan. Following success at the election, gaining seven seats, Go Waitākere targeted the district plan. It declared that there was no basis for the then restrictive controls on 7,000ha of private land in the foothills and coastal villages and sought the creation of 12,000 new sections and dwellings.²



Lion Rock, Piha (Craig Potton)

Following the election of Go Waitākere, subdivision consents were granted with unprecedented intensity. Concerned about the rate of development, the Waitākere Ranges Protection Society lodged a formal complaint with the Parliamentary Commissioner for the Environment against the newly elected Waitākere City Council. In response, the Parliamentary Commissioner reported that the planning processes, as they were being applied in the Ranges, were not sufficient to sustain the characteristics of the landscape and its ecological qualities that most people in the community cherished.³ Dr Morgan Williams, as Commissioner, tellingly concluded that the planning processes were leading inextricably to 'death by a thousand cuts'.⁴ It became clear to those trying to protect the environment, such as the Waitākere Ranges Protection Society, that the Ranges required legislative protection.

"In the most simple sense, we loved the idea that an Act of Parliament was unequivocal and enduring."

The Waitākere Ranges Protection Society had long advocated for enshrining the Ranges as a protected living heritage area and, by 2000, this started to become a possibility. As a local bill, it needed to be jointly promoted by local government entities and be sponsored by a Member of Parliament. Support was forthcoming from the Auckland Regional Council and the West Auckland Members of Parliament (Lynne Pillay and David Cunliffe). However, it was not until Go Waitākere lost seats on the Waitākere City Council in 2001 that the 'in principle' support of all the required parties was achieved.⁵ Team West, a coalition of Labour, Green and community

independents who had achieved a majority on the Waitākere City Council, had included the permanent protection of the Ranges as one of its main policies.

In 2003, Waitākere City Council and Auckland Regional Council set up a working group to discuss the concerns of the community and others in regard to subdivision pressures in the Waitākere Ranges. There was concern that the administration of district plan rules had not been rigorous enough or consistent, and that applications for non-complying consent were often granted. This was leading to negative cumulative effects and there was no certainty that inappropriate activities would not be granted consent.

Telephone surveys of over 400 residents found that most people considered the Ranges needed 'something extra' to protect them. During this extensive period of consultation, a number of options for that 'something extra' were discussed. These included a heritage area for the Waitākere Ranges, a UNESCO Biosphere Reserve and a National Park. A draft heritage area bill was even provided by EDS to the Waitākere City Council to assess as an option. However, the City Council dismissed the idea on the basis that the Bill would likely be rejected by both community and parliament. There was a sense of impatience growing with the City Council's insistence on 'full and meaningful consultation' at the expense of getting the Bill through in that parliamentary term with a sympathetic Labour Coalition Government.

The October 2004 City Council elections served as an opportunity to get the protection of the Ranges included as an election issue. John Edgar, president of the Waitākere Ranges Protection Society, formed the



Surf lifesaving tower, Te Henga/Bethells

'Save the Ranges' party which advocated strongly on the issue. Although failing to get elected, the campaign served to raise awareness and resulted in a number of candidates making public statements on the need for permanent protection of the Ranges. Backed by the community, the three councils (Waitākere City Council, Auckland Regional Council and Rodney District Council) began a work programme in November 2004 aimed at drafting a local bill.

Leading the project was Dr Graeme Campbell, formerly from the Ministry for the Environment, who had been involved in drafting the Hauraki Gulf Marine Park Act, a local area bill that was enacted in 2000. Campbell claimed that, in order to be successful, the Bill needed three key ingredients: a clear mandate, solid background work and a plan that would fulfil the objectives. Exposure to different, often dissenting views, would also give the bill integrity. This formed the basis for the lengthy consultation that followed.

"The foothills do not have the same degree of natural beauty and are often viewed as a mess of elements and not important to the Heritage Area. However, they are an important transition to the Waitākere Ranges and their wildness should be protected."

Through consultation, it became clear that the area of contention was the foothills, as this was the main area being targeted by development. The Council landed on a Heritage Area boundary that encompassed the foothills, as a buffer to the Ranges. However, this was lobbied against by development interests. The final boundary of the Heritage Area remained controversial until the Bill was ready to go to Parliament. However, in order to get that far, the Bill required council support.

"Life in the foothills was changing. Trade for the fruit shops fronting the orchards had been choked when supermarkets began opening at weekends. The beauties of Oratia – the apples for which Aucklanders had driven miles to buy at the orchard door – were being grown in the Hawkes Bay and trucked on more efficient roads to city markets... traditional, unprofitable uses of rural land could be replaced with lifestyle businesses... the foothills had distinct communities where people lived and worked... In sympathy, [the bill] contained a clause enabling people to 'provide for their social, economic and cultural wellbeing'."⁶

In order to get it over the line, the Bill was arguably watered-down by the Waitākere City Council. One noticeable change was the addition of the objective to provide for the social, economic and cultural wellbeing of the area; and the requirement that economic activity be provided for through local area plans. The provision for commercial activity in the Heritage Area was strongly opposed by the Regional Council on the basis that it would have the potential to clash with natural values.

However, the bottom line for the Bill was the support of the City Council and a number of councillors threatened to pull their vote if economic development was not included. In 2005, the Bill (including provision for local area plans) eventually passed the joint council vote to promote the Bill to Parliament.

Once presented to Parliament, the Bill took a further two years to be passed and, in the end, it came down to a single vote. Following the first reading of the Bill, in 2006, it attracted a plethora of submissions. In favour of the Bill, some submitters argued that the district plan was not addressing cumulative effects. As there was no minimum level of development, and a non-complying activity could be granted if the effects were no more than minor, development could cumulatively have a significant effect on the environment. On the contrary, those opposing the Bill claimed that it was unnecessary and that the Waitākere Ranges and foothills were already protected by the RMA and district plans. In response to the concerns of submitters, a key change was made to the Bill: the RMA would prevail in the event of a conflict. In 2008 the Bill was passed.

"We all know the weaknesses of the RMA. Having an Act to wrap the whole thing up in a parcel of bottom lines felt good. It was that extra, specialness and uniqueness of the place."

6.2 Purpose of the Act

"The good thing about the Act is that it has created an ethos for the area. Strong opponents to the Act now quite like living in the area. It created a spirit to the place."

The purpose of the Heritage Act is twofold: to recognise the national, regional and local significance of the Heritage Area and to promote the protection and enhancement of its heritage features for present and future generations.⁷ Compared to the Hauraki Gulf Marine Park Act 2000, which fulfils a similar purpose and which does not include reference to landscape explicitly, the word 'landscape' is used often in the Heritage Act.

"Once you get over the hill from Auckland you are in a different place simply because of the night sky. This was something that was really important to people, something they wanted to protect."

Section 7 of the Heritage Act lists the heritage features that contribute to the significance of the Heritage Area. These are shown in full in the spotlight below. They include features relating to terrestrial and aquatic ecosystems of prominent indigenous character, the different classes of natural landforms and landscapes, natural darkness, and the importance of community wellbeing, culture and recreation.

A spotlight on the national significance and heritage features of the Heritage Area⁸

- (1) The heritage area is of national significance and the heritage features described in subsection (2), individually or collectively, contribute to its significance.
- (2) The heritage features of the heritage area are—
 - (a) its terrestrial and aquatic ecosystems of prominent indigenous character that—
 - (i) include large continuous areas of primary and regenerating lowland and coastal rainforest, wetland, and dune systems with intact ecological sequences:
 - (ii) have intrinsic value:
 - (iii) provide a diversity of habitats for indigenous flora and fauna:
 - (iv) collect, store, and produce high quality water:
 - (v) provide opportunities for ecological restoration:
 - (vi) are of cultural, scientific, or educational interest:
 - (vii) have landscape qualities of regional and national significance:
 - (viii) have natural scenic beauty:
 - (b) the different classes of natural landforms and landscapes within the area that contrast and connect with each other, and which collectively give the area its distinctive character:
 - (c) the coastal areas, which—
 - (i) have a natural and dynamic character; and
 - (ii) contribute to the area's vistas; and
 - (iii) differ significantly from each other:
 - (d) the naturally functioning streams that rise in the eastern foothills and contribute positively to downstream urban character, stormwater management, and flood protection:
 - (e) the quietness and darkness of the Waitākere Ranges and the coastal parts of the area:
 - (f) the dramatic landform of the Ranges and foothills, which is the visual backdrop to metropolitan Auckland, forming its western skyline:

- (g) the opportunities that the area provides for wilderness experiences, recreation, and relaxation in close proximity to metropolitan Auckland:
- (h) the eastern foothills, which—
 - (i) act as a buffer between metropolitan Auckland and the forested ranges and coasts; and
 - (ii) provide a transition from metropolitan Auckland to the forested ranges and coast:
- (i) the subservience of the built environment to the area's natural and rural landscape, which is reflected in—
 - (i) the individual identity and character of the coastal villages and their distinctive scale, containment, intensity, and amenity; and
 - (ii) the distinctive harmony, pleasantness, and coherence of the low-density residential and urban areas that are located in regenerating (and increasingly dominant) forest settings; and
 - (iii) the rural character of the foothills to the east and north and their intricate pattern of farmland, orchards, vineyards, uncultivated areas, indigenous vegetation, and dispersed low-density settlement with few urban-scale activities:
- (j) the historical, traditional, and cultural relationships of people, communities, and tangata whenua with the area and their exercise of kaitiakitanga and stewardship:
- (k) the evidence of past human activities in the area, including those in relation to timber extraction, gum-digging, flax milling, mineral extraction, quarrying, extensive farming, and water impoundment and supply:
- (l) its distinctive local communities:
- (m) the Waitākere Ranges Regional Park and its importance as an accessible public place with significant natural, historical, cultural, and recreational resources:
- (n) the public water catchment and supply system, the operation, maintenance, and development of which serves the people of Auckland.

These heritage features form a holistic approach to landscape, with the individual features each forming different landscape elements. The wording used within the Act was also deliberate. 'National significance' instead of 'national importance' so as not to import an analysis under section 6 of the RMA, which requires decision makers to recognise and provide for matters of national importance (including landscapes). Instead, the individual features, not only the landscape as a whole, should be considered nationally significant.

The Heritage Act then goes on to provide a comprehensive list of objectives for establishing and maintaining the Heritage Area and protecting, restoring and enhancing the heritage features listed. Inherent in the Act is the carrying capacity of the landscape and the need to address cumulative effects. This is also expressly included in the preamble requiring the "cumulative and precedent effects of development on the landscape, the desired future character and amenity of the area, and the ecological and biological environment" to be considered.⁹ In this way, the Heritage Act addresses the failure of the RMA to manage the adverse effects of piecemeal development and case-by-case consenting in order to stop the 'death by a thousand cuts' impacts.

While there is a definite bias towards the natural environment, namely the protection of landscape and ecosystems, the Heritage Act also identifies heritage features and objectives that relate to community wellbeing and recreational interests. As all heritage features and objectives are given equal weighting, and there is no priority between them, this has caused issues in the way the Act is interpreted. An example is the control of kauri dieback which resulted in track closures. This caused tension between the conservation objectives and recreational ones.

A spotlight on the Taitomo Track proposal

In 2019, Auckland Council Community Facilities submitted a resource consent application to establish a new section of the Hillary Trail. This was to provide off-road walking access between Piha Beach and Takatu Head, thereby linking the Hillary Trail between the Mercer Bay and Tasman Look tracks. The application highlights some of the tension inherent in the Act when reconciling recreational interests and the protection of natural environments.

The new track was proposed to divert visitors away from those which had been closed due to kauri dieback infection. However, the design included a zigzag down Gentle Annie, potentially creating a significant visual impact in a prominent area. The area is one of high natural beauty overlaid with ONL, outstanding natural character, significant ecological area, ridgeline protection and outstanding natural feature overlays in the coastal environment. The construction of the track and accompanying boardwalk would likely introduce undesirable built elements into a currently uninterrupted landscape.

Despite the potentially significant adverse landscape effects of the proposal, no landscape assessment was provided to support the application. The application, to be assessed as a non-complying activity, has since been withdrawn due to budget cuts.



A spotlight on Waitākere Ranges Heritage Area covenants

If owners of land within the Heritage Area wish to manage their land in a manner that contributes to achieving the purpose and objectives of the Heritage Act, they can enter into a covenant with the Council.¹⁰ Such covenants are called Waitākere Ranges Heritage Area covenants and are treated akin to covenants created under the Reserves Act 1977,¹¹ which can be in perpetuity or for any specific period of time.¹²

The State of Environment Report 2013 for the Heritage Area records that the uptake of heritage area covenants has been slow,¹³ with the ability to establish covenants to protect private land under the Heritage Act not yet being used.¹⁴ Between 2013 and 2017, an additional 98ha of land was added to protected land within the Heritage Area,¹⁵ with three new covenants located at Te Henga, Oratia and near Titirangi.¹⁶

It is unclear whether these three covenants are Heritage Area covenants or some other type. Even if they are Heritage Area covenants, the level of uptake is extremely low and may demonstrate that land owners are preferring other types of protection mechanisms for their land i.e. Queen Elizabeth the Second National Trust covenants, conservation covenants or similar. However, as the Council does not actively promote Heritage Area covenants, it may also be a simple lack of awareness. With no operative Heritage Area covenant to review, it is not possible to assess whether the ones that exist (if any) are proving effective.

6.3 State of environment monitoring

Section 34 of the Heritage Act requires the Council to produce a five-yearly report monitoring the state of the environment of the Heritage Area, progress made towards achieving the objectives of the Heritage Act, and the funding impact arising from activities to be undertaken specifically to give effect to the Heritage Act. To date, there have been two reports: the first in 2013 and the second in 2018.

"The requirement to monitor what is happening in the Ranges has been very useful. The State of Environment reports provide a baseline and can be used to prove or disprove the concerns of the community."

Both the 2013 and 2018 State of Environment Reports were accompanied by landscape assessments of the Heritage Area. The 2013 Landscape Assessment provides an evaluation of the cumulative effects of development and forms a baseline for future monitoring.¹⁷ The 2018 Landscape Assessment analyses changes that have occurred to the landscape character of the Heritage Area between 2013 and 2017.¹⁸

Both assessments divide the Heritage Area up into three main landscape types – foothills, bush living and coastal, with each of these types being further split into landscape units. The landscape units are then assessed for scale of change and whether that change was positive or negative in terms of landscape character.

The foothills of the Heritage Area comprise a complex matrix of landform, vegetation and land uses, including remnant native vegetation, residential development along ridge top roads and areas of pasture, grazing and horticultural land uses.¹⁹ The 2013 and the 2018 Landscape Assessments both concluded that there were no identifiable changes to the landscape character of the foothills.²⁰ Some of the foothills landscape units were recorded as having either minor or very minor negative changes as a result of localised development.²¹

While the 2013 Landscape Assessment noted that increased development in some areas had led to bulky and poorly sited, designed and coloured structures that were not well integrated into the landscape,²² the 2018 Landscape Assessment notes only a few examples of this kind as a result of recent development.²³ However, the need to follow the Foothills Design Guidelines (discussed below) was emphasised as important to ensuring visual integration of development into the open, rural landscapes of the foothills units.²⁴

The bush living landscape areas are those close to and including the Ranges where native forest is still dominant. Where development occurs, it is nestled amongst the vegetation.²⁵ Both the 2013 and 2018 Landscape Assessments noted little change in any of the bush living areas.²⁶ The changes identified in the 2013 Landscape Assessment, which resulted in minor negative effects, were all associated with roading infrastructure (footpaths and bus stops). These, although small in scale, were the type of incremental changes that could undermine the special character of the Heritage Area.²⁷ The 2018 Landscape Assessment also noted some recent subdivisions which undermine the landscape character of the bush living units, with urban/suburban elements such as kerb and channelling, street lighting, retaining walls and concrete paths.²⁸

"A lot of the negative effects on landscape are roading effects not housing... Auckland Transport was upgrading roads, putting in footpaths and signs everywhere... These are very urban in character and unsuitable for the Heritage Area."

"In Piha they designed a terrible plan to upgrade the lookout. They were going to cut down all the pōhutukawa, pin the rockface, put in big retaining walls, pipe all the stormwater off the road and into the stream and pave the footpath in white concrete."

"There is a tension between providing the necessary infrastructure and locals feeling like the landscape is full of clutter. There is a view that Auckland Transport should not be putting in any infrastructure, but road safety still needs to be managed."

There is great diversity between the coastal landscapes of the Heritage Area, but they all experience common issues with activities that can potentially change their landscape character, such as vegetation removal, landform modification, the introduction of new buildings and the re-development of old ones.²⁹ The 2013 and 2018 Landscape Assessments both found, at worst, minor and very minor negative changes to the landscape character of the various coastal villages.³⁰ This finding was not conclusive for Piha which had development underway in 2017, namely a two-storey building next to the surf club, that had the potential to undermine the heritage features of the small settlement.³¹

As a result of the field assessments, both Landscape Assessments conclude that, overall, there have been only minor changes to the landscape character and heritage features of the Heritage Area.³² The 2018 Landscape Assessment notes with pleasure that only minor or very minor negative changes were found and fewer than in 2012.³³

In the 2013 Landscape Assessment, the greatest changes were seen in the foothills landscape units as a result of new subdivision and buildings, and changes at the boundary of suburban areas.³⁴ However, it predicted that in the future, coastal landscape units would be the most vulnerable landscapes sensitive to change.³⁵ This has turned out to be the case, with the 2018 Landscape Assessment recording that changes were seen more in the coastal landscape units as a result of new buildings and loss of vegetation.³⁶ Piha is already extensively developed compared to other coastal settlements within the Heritage Area. Nevertheless, the potential for substantial change in Piha and elsewhere remains high,³⁷ particularly if modest houses are redeveloped.

Further vulnerabilities include the foothills area which could be impacted if development is poorly designed and

integrated.³⁸ Development is expected there, as the Oratia and Swanson structure plans are implemented, and this could undermine the rural character of the more open parts of these landscape units.³⁹ Specific foothills areas, such as the Sapich Winery and Lockington Lyon property in Henderson Valley, may also be redeveloped as their current land uses become uneconomic.⁴⁰

In light of these findings, the 2018 Landscape Assessment concludes that the consenting process is, by and large, resulting in appropriate development being undertaken.⁴¹ At the time, however, it was difficult to determine under which plan the subdivision and development had been granted – the legacy district plan or the new Auckland Unitary Plan. The 2018 Landscape Assessment recommends that great care be taken over the next five-year monitoring period to ensure that the new consenting environment (under the Auckland Unitary Plan) continues to provide for the protection, restoration and enhancement of the features of the Heritage Area.⁴² That is pertinent advice given observations that the Plan does not mention the Heritage Area's local area plans, which are a useful tool for identifying and protecting the landscape character of various parts of the Heritage Area;⁴³ and that development potential in the Auckland Unitary Plan has the ability to undermine the rural character of the more open parts of the lower foothills landscape units.⁴⁴

Finally, the term landscape has been defined as "... reflecting the cumulative effects of natural and cultural processes."⁴⁵ As noted above, there are multiple heritage features under the Heritage Act that relate to landscapes. These matters are primarily addressed in the landscape assessments canvassed above. However, given the wide ambit of the term 'landscape', the State of Environment reports also provide the following important insights into the state of various heritage features which are either part of landscapes or impact upon them. Both the 2013 and 2018 State of Environment Reports record only a small change in the level of terrestrial vegetation and extent of wetland habitat. The Night Sky Brightness was also tested in the 2018 Report, which found that the Heritage Area would meet the Bronze Standard for the International Dark Sky Association.⁴⁶

Surf at Piha



ENDNOTES

- 1 Waitākere Ranges Protection Society, forthcoming, 50
- 2 Waitākere Ranges Protection Society, forthcoming, 64
- 3 Parliamentary Commissioner for the Environment, 2001, 3
- 4 Parliamentary Commissioner for the Environment, 2001, 3
- 5 Waitākere Ranges Protection Society, forthcoming, 68 to 70
- 6 Waitākere Ranges Protection Society, forthcoming
- 7 Waitākere Ranges Heritage Area Act 2008, Section 3(1)
- 8 Waitākere Ranges Heritage Area Act 2008, Section 7
- 9 Waitākere Ranges Heritage Area Act 2008, Preamble (10)(a)
- 10 Waitākere Ranges Heritage Area Act 2008, Section 23(1)
- 11 Waitākere Ranges Heritage Area Act 2008, Section 23(1) and (3)
- 12 Reserves Act 1977, Section 77
- 13 Waitākere Ranges Local Board, 2013, 53
- 14 Waitākere Ranges Local Board, 2013, 86
- 15 Auckland Council, 2018, 13
- 16 Auckland Council, 2018, 41
- 17 Melean Absolum Limited, 2013, 8
- 18 Melean Absolum Limited, 2017, 5
- 19 Melean Absolum Limited, 2017, 16
- 20 Melean Absolum Limited, 2013, 19; Melean Absolum Limited, 2017, 17
- 21 Melean Absolum Limited, 2013, 19; Melean Absolum Limited, 2017, 17
- 22 Melean Absolum Limited, 2013, 19
- 23 Melean Absolum Limited, 2017, 19 and 17
- 24 Melean Absolum Limited, 2017, 19
- 25 Melean Absolum Limited, 2017, 21
- 26 Melean Absolum Limited, 2013, 21; Melean Absolum Limited, 2017, 21
- 27 Melean Absolum Limited, 2013, 22
- 28 Melean Absolum Limited, 2017, 21
- 29 Melean Absolum Limited, 2017, 22
- 30 Melean Absolum Limited, 2013, 23 to 27; Melean Absolum Limited, 2017, 22 to 29
- 31 Melean Absolum Limited, 2017, 28
- 32 Melean Absolum Limited, 2013; Melean Absolum Limited, 2017, 31
- 33 Melean Absolum Limited, 2017, 31
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- 37 Melean Absolum Limited, 2017, 34
- 38 Melean Absolum Limited, 2017, 34
- 39 Melean Absolum Limited, 2017, 34
- 40 Melean Absolum Limited, 2017, 34
- 41 Melean Absolum Limited, 2017, 33
- 42 Melean Absolum Limited, 2017, 37
- 43 Melean Absolum Limited, 2017, 37
- 44 Melean Absolum Limited, 2017, 34
- 45 New Zealand Institute of Landscape Architects, 2010, Preamble
- 46 Auckland Council, 2018, 98

7. REGIONAL AND DISTRICT PLANNING UNDER THE RMA

In 2008, when the Heritage Act was enacted, the Auckland Regional Policy Statement 1999 (Auckland RPS) and the Auckland Council District Plan – Operative Waitākere Section 2003 (Legacy District Plan) applied to the landscapes of the Heritage Area. Since then, the Auckland Unitary Plan has merged district and regional landscape provisions, and is now the relevant plan. Although these historic plans are no longer in existence, it is worthwhile touching on their provisions to compare the level of protection under the two planning regimes.

A spotlight on the formation of Auckland Council

The amalgamation of Waitākere City Council, Auckland Regional Council and six other territorial authorities to form Auckland Council was not anticipated when the Heritage Act was drafted. Much of the regional planning that had been undertaken by Auckland Regional Council was lost on amalgamation, and the development of the Auckland Unitary Plan did not involve the regional planning expertise held within the previous regional council. While we heard from many that the protections put in place by the Waitākere City Council withstood the amalgamation process in terms of planning instruments, arguably what has been lost is the institutional knowledge held by both the Auckland Regional Council and Waitākere City Council.

“The amalgamation was not kind to the Waitākere City Council. Staff were viewed as a bunch of hippies and a lot of staff were lost.”

We were told that, due to the scale of Auckland Council, the region is now viewed through a city lens and many of those dealing with the Waitākere Ranges don’t know the history of the Heritage Act. As such, a big role of the Waitākere Ranges Local Board has been to keep the Heritage Area at the forefront of decision-making in the area.

This issue is also reflected in concerns that consenting has become a ‘tick box’ exercise, undertaken by consultants that do not have knowledge of the area. This may also be in part due to local area plans, discussed below, not being incorporated into the Auckland Unitary Plan.

promote the protection, restoration and enhancement of the area’s heritage features”¹. This was accompanied by two strategic direction policies. The urban strategic policy sought to manage existing urban areas in a manner that maintained and enhanced significant natural heritage, landscape, amenity and character values including in the Heritage Area where there is “limited capacity to absorb further subdivision”². The rural strategic policy sought to avoid adverse effects on the Waitākere Ranges and promote the protection, restoration and enhancement of those features that contribute to the natural and cultural heritage, landscape, amenity and recreational values of the area and to the wellbeing of local communities.³

The RPS detailed Auckland’s landscape heritage, including its ONLs and amenity landscapes. The landscape objectives sought to protect ONLs from inappropriate subdivision, use and development while enabling appropriate activities in some outstanding natural ‘working’ landscapes.⁴ They also sought to maintain the overall quality and diversity of character and sense of place of Auckland’s landscapes.⁵ The policies which gave effect to the objectives established a hierarchy whereby ONLs were to be protected⁶ and amenity landscapes were to be maintained and where practicable enhanced.⁷ The policies also required that subdivision, use and development in areas adjoining ONLs have regard to adverse effects on those protected landscapes.⁸ Similar policies were included in Chapter 7, which addressed the coastal environment.⁹ The Auckland RPS had been revised shortly before amalgamation. However, the Auckland Unitary Plan process took over and this work was abandoned.



7.1 Historic planning instruments

Auckland Regional Policy Statement 1999 (Auckland RPS)

The Auckland RPS included a strategic objective to “protect the Waitākere Ranges Heritage Area from inappropriate subdivision, use and development, and to

Auckland Council District Plan – Operative Waitākere Section 2003 (Legacy District Plan)

The Legacy District Plan set out a suite of objectives, policies and rules to 'give effect' to the purpose and objectives of the Heritage Act. Rather than attempt to interpret how the District Plan could 'give effect' to the Heritage Act, it simply imported key aspects of the Heritage Act in full.¹⁰ This approach added little additional weight or consideration to the objectives of the Heritage Act in practical terms, except in respect of non-complying resource consent applications.

Section 13 of the Heritage Act already requires that non-complying and discretionary activities have 'particular regard to' the objectives of the Heritage Act. In addition, controlled or restricted discretionary activities need to consider relevant objectives. However, by importing the Act's objectives directly into the District Plan, non-complying activities must not be contrary to them if they are to pass through one of the non-complying gateways of section 104D of the RMA. This gives them added weight.

The Legacy District Plan included a focus on local area plans and recognised that they embraced the setting of long term objectives to be achieved through decisions made under the Plan.¹¹ In that vein, it set out objectives and policies for each local area plan, which indicated how the character, amenity and environment of the local area would be managed.

General objectives and policies that applied to activities within the Heritage Area were also included in the Plan. They included provisions relevant to urban growth as well as those addressing effects on landscape and natural character more broadly.¹²



Dune restoration, Te Henga/Bethells

A spotlight on local area plans

The Heritage Act provides for local area plans to be prepared by the Council in consultation with the local community for the purpose of promoting the purpose and objectives of the Heritage Act and to inform decision making-processes that relate to the Heritage Area.¹³ The original thinking behind the plans was that they would be an acknowledgment of the different characters of areas within the Heritage Area and would ease community concerns that a one-size fits all approach would be adopted.

Under the Heritage Act, local area plans must define the area to which the plan applies and identify the extent and nature of heritage features present and how the objectives of the Act would be promoted. They must also identify the distinctive natural, cultural or physical qualities or characteristics of the local area that contribute to the area's aesthetic, cultural or recreational attributes; and state policies and objectives in relation to the amenity, character and environment of the local area.¹⁴ Although Council driven, local area plan preparation processes must encourage interested or affected persons to participate in, and contribute to, the plan's development. Ngāti Whatua and Te Kawerau a Māki must be specifically consulted.¹⁵

There are five local area plans applying to the Heritage Area – Waiatarua (Dec 2009), Oratia (Dec 2009), Henderson Valley/Ōpanuku (Oct 2010), Muddy Creek (Parau, Laingholm, Woodlands Park and Waima – Feb 2014) and Bethells/Te Henga (Oct 2015). These plans set out long-term community goals for the future use, character, community wellbeing and environment in these areas.

While local area plans are helpful guides for community aspirations in defined areas, they have no legal effect within Local Government Act 2002 or RMA contexts. Under the Heritage Act, if the Council makes a decision that is significantly inconsistent with a local area plan, it must identify the inconsistency, the reasons for it and any intention it has to amend the plan to accommodate the decision.¹⁶ But the Council is not required to go further. It does not have to act on any matter set out in a local area plan. Nor is any person entitled to require the Council to implement any provision of it.¹⁷

The Council can decide to incorporate aspects of a local area plan that relate to managing the use, development or protection of natural and physical resources into its district plan. If this is not done, a local area plan has no effect on any decision under the RMA.¹⁸

The local area plans listed above describe their potential uses as providing the basis for information and policy development in the preparation of the Waitākere Ranges Local Board Area Plan under the Local Government Act and as an advocacy tool for the Local Board and Council when providing recommendations and feedback to Council Controlled Organisations. Through their role of inputting into Local Board Plans (which in turn input into the Council's budget) local area plans have the ability to influence the allocation of finances to local matters. The local area plans also note that the Council could make changes to other plans to reflect their provisions i.e. the district plan, the long-term council community plan and annual plans.

"Local area plans are not as effective as they could be. The Local Board and communities put a huge amount of effort into them and they just sat on the shelf. There needs to be an emphasis on implementation and actually doing what is set out in the plans."

As discussed above, the legacy Waitākere District Plan incorporated extensive aspects of two local area plans (Oratia and Waiatarua) into its provisions.¹⁹ The inserted provisions mirrored the local area plans' descriptions of the heritage features of each area, and their existing character and amenity, but also included specific subdivision and land use provisions associated with the local areas. Doing so made those incorporated aspects regulation in the context of resource consent applications. The Auckland Unitary Plan has not followed suit, and the long-term community goals for the future as set out in the local area plans, are not reflected in its provisions in any direct way.

The Legacy District Plan divided Waitākere up into natural areas and human environments, as seen in Figure 8. The map on the left identifies natural areas and classifies land as either coastal, general, managed, natural water body, protected or restoration. The map on the right identifies human environments and classifies land by zones – for example, open space, bush living and foothills.

Piha, showing the extent of coastal settlement (*Craig Potton*)



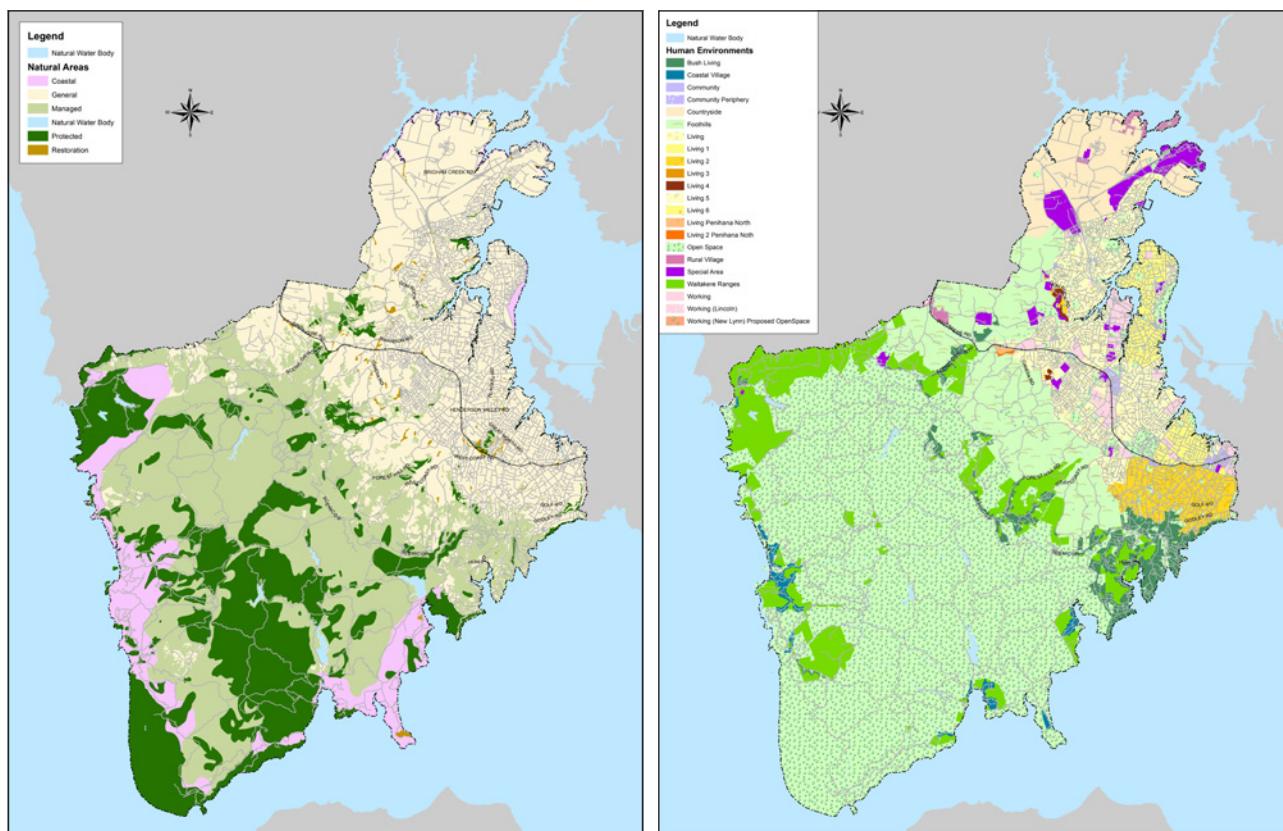


Figure 8: Planning overlays in the Waitākere Ranges Heritage Area (Legacy District Plan)

In terms of natural areas, the majority of the Heritage Area was classified as either managed or protected land, with areas classified as coastal around the periphery and general in the foothills. In terms of human environments, almost all of the Heritage Area was zoned open space (public land), with a Waitākere Ranges zone at its edges and a foothills zone beyond and extending up to the urban limit. Pockets of coastal village zoning were scattered around the coast and the bush living zone dominated the Titirangi/Huia area.

Specific rules applied to each of these natural areas and human environments. Generally speaking, the foothills environment were the most permissive within the Heritage Area, followed by the bush living and Waitākere Ranges areas, with coastal village being the most restrictive. For example, while all zones mentioned in the preceding paragraph allowed for one dwelling and one minor household unit per site, the footprint and requirements in the coastal zone were more restrictive than the foothills environment (for example, requiring a minimum net site area of 1500m² and the unit being incorporated within or sharing a common wall with the main dwelling). Sensitive ridgeline and headland controls applied over all environments.

With regard to natural areas, all areas had specific rules relating to vegetation clearance, earthworks and impermeable surfaces, being activities which could impact on landscape values. The rules were detailed, with the level of regulation applied corresponding to the level of protection needed for the underlying natural area. Provisions were more generous for the general natural area and more restrictive for the protected natural area. Generally speaking, earthworks

were permitted if they were confined to an approved building platform and were not on a headland/cliff/scarp.²⁰ Earthworks in the coastal and managed natural areas were non-complying if they exceeded 100m³.²¹

In addition, the coastal, protected, general and managed natural areas (the main areas applicable to the Heritage Area) all included an additional assessment criterion for vegetation clearance and earthworks that required consideration of the extent to which vegetation alteration/earthworks would adversely affect the significance, landscape value, heritage value or natural character of any natural features.²²

Subdivision under the Legacy District Plan was largely determined by a series of structure plans, large area management plans and subdivision plans. Generally speaking, subdivision was provided for as follows:

- Foothills environment – controlled activity if the minimum site area was more than 4ha.²³
- Bush living environment – discretionary activity if the minimum net site area was 4ha.²⁴
- Coastal village – restricted discretionary activity if the minimum net site area was 4ha.²⁵
- Waitākere Ranges environment – discretionary activity if the proposed sites averaged 4ha over the net site area and each individual proposed site was a minimum of 2ha.²⁶

For the foothills, bush living and Waitākere Ranges environments, subdivision that was more intensive than provided for in the rules (and not provided for in the structure plan documents) was a prohibited activity.

7.2 Auckland Unitary Plan

The Auckland Unitary Plan became operative in part, in 2016, with a number of appeals yet to be resolved. As described above, the Plan replaced the Auckland RPS and 13 district and regional plans (including the Waitākere District Plan) and increased consistency in the planning regime for the Auckland region.

At a high level, the Auckland Unitary Plan provisions reflect those of the Legacy District Plan. However, the Auckland Unitary Plan does not directly refer to local area planning or appear to incorporate the provisions of any local area plans in any significant way. As mentioned above, it also provides for almost double the potential subdivision in the foothills zone than the Legacy District Plan. This could result in further subdivision in the foothills area, reducing the rural character of the area and creating a risk of adverse landscape effects.

Regional provisions

The regional provisions of the Auckland Unitary Plan include regional policy provisions relevant to outstanding natural features and landscapes. The Plan seeks to protect these features and landscapes from inappropriate subdivision, use and development.²⁷ Corresponding policies require identifying places that are ONLs and outstanding features, mapping them and protecting their physical and visual integrity from inappropriate subdivision, use and development.²⁸

The Plan includes a policy framework that deals specifically with the Heritage Area. It includes a number of objectives and policies seeking, inter alia, that the environmental and heritage features of the Waitākere Ranges be protected, restored and enhanced for the benefit, use and enjoyment of the community;²⁹ and that the natural and historic resources of the Waitākere Ranges Regional Park be protected in perpetuity for their intrinsic worth and benefit to the communities of Auckland and New Zealand.³⁰ The Plan also requires that development

is sympathetic to the qualities and natural features of the Waitākere Ranges;³¹ that cumulative effects of activities are recognised and avoided;³² and that the character, scale and intensity of subdivision, use or development does not affect the heritage features or contribute to urban growth outside the Rural Urban Boundary.³³

A spotlight on the Rural Urban Boundary

The Auckland Spatial Plan 2050 sets out the long-term spatial goals for Auckland over the next 30 years. The Rural Urban Boundary defines the extent of urban development expected, with areas to be kept rural sitting outside this. The Plan creates a multi-nodal development strategy with a number of centres accommodating growth within the urban footprint.³⁴ New Lynn and Henderson are identified as future development, with all greenfields development being managed within the urban extent of the Rural Urban Boundary.

The Rural Urban Boundary currently provides an additional policy barrier to subdivision and development within the Heritage Area. Without it, and in the context of future population growth in Auckland, the importance of the Heritage Act and its landscape protections may be elevated.

The Auckland Unitary Plan has set the Rural Urban Boundary to align with the edge of the Heritage Area with one noticeable exception. Land zoned residential-large lot in Titirangi and Laingholm is within the Heritage Area but also within the urban extent of the Boundary. Council must ensure that the Plan is not inconsistent with the purpose or objectives of the Heritage Act.³⁵ In the event of a conflict, the latter prevails.

Given that the Auckland Plan does not promote future urban development within the Heritage Area, and that only limited additional development is projected within an area limited by its large lot zoning, the plan appears to be consistent with the Heritage Act.

District provisions

One of the Council's main aims when developing the Auckland Unitary Plan provisions applicable to the Heritage Area was to carry over a number of structure plans/plan changes from the Legacy District Plan. This resulted in the notified version of the Auckland Unitary Plan containing a complex web of 11 precincts, sub-precincts, policy areas and sub-policy areas for the Waitākere Ranges. Various zones and overlays added additional complexity. Following submissions on the plan, the Independent Hearings Panel attempted to simplify the provisions while still substantively retaining the management approach in the legacy plan.

The Auckland Unitary Plan now has a graduated structure for the Waitākere Ranges as shown in Figure 9.



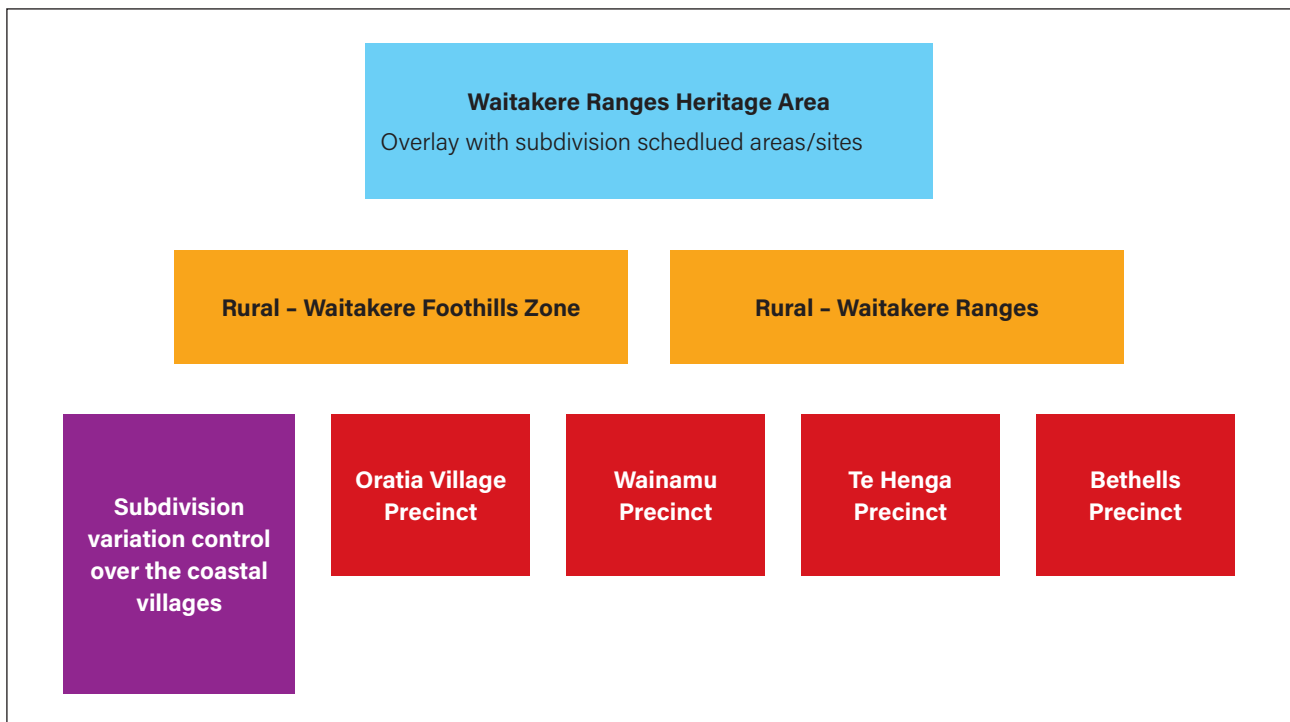


Figure 9: Structure of planning overlays for the Waitākere Ranges Heritage Area (Auckland Unitary Plan)⁸³

The Waitākere Ranges Heritage Area Overlay

The Waitākere Ranges Heritage Area Overlay sits at the top of the framework and contains objectives and policies that give effect to the purpose and objectives of the Heritage Act.³⁶ The Overlay applies to all zones within the Heritage Area which ensures that effects on the area as a whole are considered when decisions are made affecting any part of it.³⁷

There are nine general objectives that apply to the Overlay, and further specific objectives applicable to the scheduled subdivision areas described below.³⁸ Objective 1 states that the Heritage Area and its features described in section 7 of the Heritage Act are protected, restored

and enhanced.³⁹ Objective 5 states that the quality and diversity of landscapes in the Heritage Area identified as having local, regional or national significance are maintained.⁴⁰ While a range of activities are enabled,⁴¹ the objectives recognise the limited capacity of the area to provide for growth⁴² and that subdivision, use and development is subservient to the natural and rural landscape and character.⁴³ The Overlay's policies focus on protecting the Heritage Area's features, specifically the different natural landforms and landscapes, the distinctive natural and rural character and the quietness and darkness of the Waitākere Ranges and coastal part of the Heritage Area.



With regard to subdivision, the Overlay contains five scheduled subdivision areas that contain additional subdivision standards to reflect the subdivision controls present in plan changes and structure plans within the Legacy District Plan. These areas are: Oratia (Foothills), Oratia (Ranges), Swanson South, Rural Bush Living (Ranges) and Titirangi-Laingholm.⁴⁴ The specific controls in these areas take precedence over the Overlay controls. For example, subdivision in scheduled areas is either discretionary if it complies with the standards or non-complying if it does not. The exception is subdivision within the Oratia (Foothills) area and certain other individual sites where subdivision that complies with the standards is restricted discretionary. Outside these areas, subdivision that does not comply with the standards is a prohibited activity.

A spotlight on the use of prohibited activity status in the Heritage Area

The notified version of the Auckland Unitary Plan included prohibited activity status for subdivision exceeding allocated entitlement. However, on recommendation from the Independent Hearings Panel, this was changed to non-complying activity status in the decisions version of the Auckland Unitary Plan.⁴⁵ The Waitākere Ranges Protection Society appealed that decision on the basis that the Independent Hearings Panel failed to comply with its duties and obligations pursuant to the Heritage Act, specifically to give effect to the purpose and objectives of the Act, and that prohibited activity status was the most appropriate way to achieve the objectives of the Act. The Council accepted the argument, agreeing that non-complying activity status would not ensure an appropriate level of protection for the area and its features. As a result, the Council agreed to amend the default activity status for subdivision from non-complying to prohibited activity when specific density requirements are exceeded in the following areas:⁴⁶

- (a) The southern parts of the former Swanson Structure Plan;
- (b) The Oratia Ranges (the upper parts of the Oratia Valley);
- (c) Rural parts of Titirangi-Laingholm (but not those sites that were part of Titirangi Subdivision Area 1 and Titirangi-Laingholm Subdivision Area 2); and
- (d) The Rural-Waitākere Ranges zone (comprising privately owned land around the periphery of the Regional Park).

These areas represent the most sensitive parts of the Heritage Area.

In theory, the Overlay contains a series of objectives and policies that should ensure that subdivision, use and development within the Heritage Area does not undermine the landscape outcomes of the Heritage Act.

The Rural Waitākere zones

Sitting below the Overlay, the Auckland Unitary Plan establishes two new rural zones applicable only within the Waitākere Ranges. These are an acknowledgement that the natural landscape and rural character of the Heritage Area is unique and warrants its own zoning.

The new Rural-Waitākere Foothills zone creates a buffer between the more urban suburbs of Swanson, Sunnyvale, Henderson, Glen Eden to the east and the Waitākere Ranges to the west. It includes the mixed rural and natural landscapes of the eastern foothills catchments of Oratia, Opanuku, Swanson South and the upper Kumeu streams, excluding the relatively contiguous bush cover of the upper catchment and ridges.⁴⁷ The zone mirrors the Rural-Countryside Living Zone but recognises the rural character of the foothills and their role as a buffer between the urban area and the natural landscapes of the Ranges.⁴⁸ Activities include a mixture of vineyards, orchards, dwellings and pasture.⁴⁹

The new Rural-Waitākere Ranges zone is scattered around the edge of the Regional Park and in the hinterland behind the foothills. It typically contains small holdings and residential properties and has a natural character dominated by bush-clad land.⁵⁰ It contains heritage features such as areas of contiguous native bush, coastal areas, significant landforms and geological sites, and significant and other terrestrial and aquatic ecosystems.⁵¹

The zone mirrors the provisions of the Rural-Rural Conservation zone and provides limited opportunity for growth and development.⁵² Activities provided for in the zone enable and support the social, economic, cultural and environmental well-being of the people that live and work in the zone and within its distinct communities, while protecting, restoring and enhancing the heritage features of the zone.⁵³

Sitting beneath the zones are four precincts: Oratia Village, Wainamu, Te Henga and Bethells which provide for the specific management of the unique elements of these areas.

In addition, the Auckland Unitary Plan includes a series of overlays that set out objectives for the protection of outstanding natural landscapes and features, outstanding and high natural character and significant ecological areas. To ensure the integrity of ridgelines within the Heritage Area, the Plan also includes a ridgeline protection overlay to mitigate against the adverse visual effects of structures on ridgelines.

7.3 Relationship with the RMA

As discussed in the preceding section, the Heritage Act introduces additional considerations for Auckland Council when making decisions under the RMA. However, in the event of a conflict, the RMA prevails.⁵⁴

An example of a conflict between the RMA and Heritage Act

In *Maehl v Lenihan*,⁵⁵ advocates seeking the protection of a kauri tree in Titirangi that was proposed to be removed, argued that the Heritage Act required that it be saved. The tree was not within a significant ecological area or individually protected under the Auckland Unitary Plan.

In the circumstances, the Court held that the Heritage Act 'has little impact' because the RMA provisions, which only protect trees specifically identified, have priority.⁵⁶ The Heritage Act cannot provide the basis for the issuing of any enforcement order under the RMA, where that order would contradict the tree protection provisions of the RMA and the Auckland Unitary Plan, which provided for removal of this tree as a permitted activity.⁵⁷ Further, and in line with the High Court's comments in *Duggan*, the Court noted that the provisions of the Heritage Act are already largely taken into account in regional and district plans, resource consents and conditions.⁵⁸

When preparing or reviewing regional policy statements, regional plans or district plans the Heritage Act requires that Councils 'give effect' to its purpose and objectives.⁵⁹ In effect, this equates the purpose and objectives of the Heritage Act to that of national policy statements under the RMA. As the Supreme Court in *King Salmon* confirmed, 'give effect to' is a strong directive and creates a firm obligation on the part of those subject to it.⁶⁰

Further, when undertaking policy or plan development or review, Auckland Council must examine whether the plan, change or variation that affects the Heritage Area is the most appropriate way to achieve the objectives of the Act.⁶¹ Council may reject a private plan change if it is inconsistent with the purpose or objectives of the Heritage Act.⁶²

When considering a resource consent application for a discretionary or non-complying activity in the Heritage Area, Council must 'have particular regard' to the purpose and objectives of the Heritage Act.⁶³ Similarly, a person making a decision or recommendation on a designation or heritage order that relates to the Heritage Area must also 'have particular regard' to the purpose and objectives of the Heritage Act.⁶⁴

The High Court in *Duggan v Auckland Council*⁶⁵ assessed the level of inquiry required by these provisions in the context of a judicial review. The Court held that the requirement to 'have particular regard' requires the Council to consider the relevant provisions and weigh them as part of the overall decision.⁶⁶ However, it is not necessary to expressly refer to particular sections of the Heritage Act as to do so would impose an impossible burden on the Council.⁶⁷

In addition, the Court noted that the Auckland Unitary Plan is required to give effect to the purpose and objectives of the Heritage Act and it did so via the Waitākere Ranges Heritage Overlay.⁶⁸ As there was no suggestion that the relevant provisions of the Plan were

invalid or uncertain, or that the plan failed to address the purpose and objectives of the Heritage Act, the Court held that the Council can be said to have complied with its obligations under the Heritage Act by having regard to the relevant provisions of the plan.⁶⁹

For a controlled or restricted discretionary activity in the Heritage Area, the Council must consider the purpose and objectives of the Heritage Act as if they were matters specified in the plan or proposed plan over which the Council has reserved its control or has restricted the exercise of its discretion.⁷⁰

While an important additional consideration, the Heritage Act is not a veto against development; it does not prevent appropriate development occurring.⁷¹ Rather, the Heritage Act recognises that people live and work in the Heritage Area and that those people should be able to provide for their social, economic and cultural well-being in a manner appropriate to the significance of the area and its natural features.⁷²

The Courts' comments in *Duggan* and *Maehl* are a reminder of the importance of ensuring that planning provisions relevant to the Heritage Area are robust in terms of 'giving effect' to the purpose and the objectives of the Heritage Act. Once beyond challenge, such planning provisions may be relied upon as evidence of a resource consent being appropriate under the Heritage Act, because those planning provisions already give effect to the Heritage Act.

7.4 Is the planning regime giving effect to the purpose and objectives of the Heritage Act?

The latest State of Environment Report concludes that the Legacy District Plan provisions have achieved the landscape objectives of the Heritage Act.⁷³ Despite noting that the Auckland Unitary Plan provisions are not reflected in its findings (as that Plan was only made operative in 2016), it cautiously asserts that the planning framework within the Auckland Unitary plan seems to be ensuring that only appropriate development is occurring in most situations.⁷⁴

This conclusion is supported by the 2018 Landscape Assessment which states that, despite the numerous consented changes within the Heritage Area, either the Legacy District Plan provisions or the Auckland Unitary Plan provisions are ensuring minimal change to the landscape character and heritage features of the majority of the landscape units.⁷⁵

While these conclusions are promising, it seems prudent not to become overly confident. Although both of the Landscape Assessments only find minor changes to the landscape character of the Heritage Area, these changes have the potential to be significant on a cumulative basis. Objective 8(d) of the Heritage Act seeks to "recognise and avoid adverse potential, or adverse cumulative, effects of activities on the area's ... heritage features". In accordance with the Supreme Court's findings in *King Salmon*, the term "avoid" is to be interpreted as "not allow" or "prevent

the occurrence of".⁷⁶ Further, objective 8(f) of the Heritage Act seeks to ensure that "any subdivision or development in the area, of itself or in respect of its cumulative effect ... does not adversely affect the heritage features...".

The findings of the 2018 Landscape Assessment state, with respect to the above two objectives, that "some negative amenity effects recorded, but generally avoided" and "some development and subdivision adversely affecting rural character. More noticeable in the Foothills landscape units".⁷⁷ Further, the summary assessment table in the 2018 Landscape Assessment records one minor negative result in the foothills environment and two in the coastal environment. It also records two very minor negatives in the foothills environment and six in the coastal environment.⁷⁸

While the term 'adverse' is not defined in the Heritage Act, its ordinary meaning is "preventing success or development; harmful; unfavourable."⁷⁹ In that context, the minor changes described in the Landscape Assessments could readily be considered 'adverse' effects and should not occur. Consequently, it could be concluded that the planning regime, which is allowing such outcomes, is not giving effect to the Heritage Act. The situation is not, however, as simple as that. There are a number of factors which indicate that, notwithstanding these minor changes, the planning regime is giving effect to the Act.

First, it appears that the majority of minor changes to landscape character identified in the Landscape Assessments arise as a result of resource consents. Although the Heritage Act requires that policy statements and plans 'give effect' to the purpose and objectives of the Heritage Act, discretionary and non-complying resource consent applications need only have 'particular regard' to them, and controlled and restricted discretionary resource consent applications need only 'consider' them. The Heritage Act's requirement for discretionary and non-complying applications to have 'particular regard' is stronger than the RMA's requirement for all applications to 'have regard', but it does not create a strict obligation on resource consent applications to comply with the purpose and objectives of the Heritage Act. Having said that, to obtain consent for a non-complying activity it must either have minor adverse effects or not be contrary to the objectives and policies of the relevant plans (which in this context must give effect to the Heritage Act).

Secondly, the minor changes identified in the Landscape Assessments are just that, minor. As accepted by the Supreme Court in *King Salmon*, it would be improbable to prohibit an activity that has minor or transitory adverse effects in order to achieve the environmental protection required.⁸⁰ In that regard, although the minor changes identified by the Landscape Assessments are adverse and should be avoided, it cannot be expected that the planning regime will prohibit all adverse effects, no matter their severity or permanence.

This is particularly so, given that the Heritage Area objectives do not seek to preserve landscapes. Rather the focus is on protection, although the strong, clear language suggests that the protection requirement is very high i.e. that development 'does not' adversely affect heritage

features and that adverse cumulative effects are 'avoided'. These statements are offset somewhat by objectives which recognise change within the landscape (objective (g)(iii)) and that people live and work in the area so must be provided for (objective (i)). As the Environment Court in *Protect Piha Heritage Society Inc v Auckland Regional Council* stated, the Act does not intend to prevent appropriate development occurring in coastal villages such as Piha, nor the wider Waitākere Ranges.⁸¹

Thirdly, it appears that some of the minor changes identified in the Landscape Assessments are a result of illegal works or natural changes (i.e. trees dying). These adverse effects cannot be attributed to the effectiveness or otherwise of the planning regime.

One common thread we heard through the interviews, and that showed up through our research, was the need to incorporate the Design Guidelines within the Auckland Unitary Plan itself. There are currently two design guidelines applicable to the Heritage Area – the Foothills Design Guideline and Building in the Bush Design Guideline – and one guideline still being finalised – Auckland Council's Urban Design Guideline. These documents are non-statutory and only have legal effect as 'other matters' to be considered when assessing resource consent applications.⁸² They do not form part of the regulatory framework for activities within the Heritage Area, yet the 2018 Landscape Assessment appears to suggest that some of the negative changes to landscapes identified could have been avoided if the guidelines had been followed. If incorporation into the Plan is not achievable, these design guidelines should, at minimum, be a required consideration for consent planners.

In accordance with the above, the minor adverse effects identified in the Landscape Assessments are not symptomatic of a planning regime that is not giving effect to the Heritage Act. For the majority of the time, the planning regime is protecting the landscape character of the Heritage Area. The real test going forward will be whether the Auckland Unitary Plan maintains the level of protection afforded by the Legacy District Plan and ensures that landscape heritage features are protected into the future.



ENDNOTES

- 1 Auckland Regional Policy Statement 1999, Objective 2.6.1.20
- 2 Auckland Regional Policy Statement 1999, Policy 2.6.5.12
- 3 Auckland Regional Policy Statement 1999, Policy 2.6.17.1(i)(viii)
- 4 Auckland Regional Policy Statement 1999, Objectives 6.3.4 and 6.3.6
- 5 Auckland Regional Policy Statement 1999, Objective 6.3.5
- 6 Auckland Regional Policy Statement 1999, Policy 6.4.22.1
- 7 Auckland Regional Policy Statement 1999, Policy 6.4.22.2
- 8 Auckland Regional Policy Statement 1999, Policy 6.4.22.3
- 9 Auckland Regional Policy Statement 1999, Policies 7.3.1 and 7.3.2
- 10 Auckland Council District Plan – Operative Waitākere Section 2003, Section 5B.1.2 Objectives – Waitākere Ranges Heritage Area
- 11 Auckland Council District Plan – Operative Waitākere Section 2003, Section 5B.2.3 Long Term Character and Amenity – Local Area Plans
- 12 For example, Sections 5.6, 5.7, 5.9, 5.10 and 5.11
- 13 Waitākere Ranges Heritage Area Act 2008, Sections 25(1) and (2)
- 14 Waitākere Ranges Heritage Area Act 2008, Section 25(3)
- 15 Waitākere Ranges Heritage Area Act 2008, Section 26
- 16 Waitākere Ranges Heritage Area Act 2008, Section 27(2)
- 17 Waitākere Ranges Heritage Area Act 2008, Sections 27(1) and (3)
- 18 Waitākere Ranges Heritage Area Act 2008, Section 28(3)
- 19 Waitākere District Plan, Section 5B The Waitākere Ranges Heritage Area
- 20 Waitākere District Plan, Protected Natural Area, Rule 3.1; Coastal Natural Area, Rule 3.1; General Natural Area, Rule 3.1; Managed Natural Area, Rule 3.1
- 21 Waitākere District Plan, Coastal Natural Area, Rule 3.3; Managed Natural Area, Rule 3.3
- 22 Waitākere District Plan, Protected Natural Area, Assessment Criteria 2(e) and 3(g); Coastal Natural Area, Assessment Criteria 2(f) and 3(g); General Natural Area, Assessment Criteria 2(k) and 3(d); Managed Natural Area, Assessment Criteria 2(e) and 3(f)
- 23 Waitākere District Plan, Foothills Subdivision, Rule 7.1
- 24 Waitākere District Plan, Bush Living Subdivision, Rule 10.1
- 25 Waitākere District Plan, Coastal Villages Subdivision, Rule 9.1
- 26 Waitākere District Plan, Waitākere Ranges Subdivision, Rule 11.1
- 27 Auckland Unitary Plan, B4 Natural Heritage, Objective B4.2.1(1)
- 28 Auckland Unitary Plan, B4 Natural Heritage, Policies B4.2.2
- 29 Auckland Unitary Plan, B4.4.1(1)
- 30 Auckland Unitary Plan, Objective B4.4.1(9)
- 31 Auckland Unitary Plan, Objective B4.4.1(3)
- 32 Auckland Unitary Plan, Objective B4.4.1(4)
- 33 Auckland Unitary Plan, Objective B4.4.1(5)
- 34 Auckland Council, 2018a, 204
- 35 Waitākere Ranges Heritage Area Act 2008, Section 18(2)
- 36 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.1 Background
- 37 Auckland Unitary Plan Independent Hearings Panel, 2016, 5
- 38 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2 Objectives
- 39 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2(1) Objectives
- 40 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2(5) Objectives
- 41 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2(2) Objectives
- 42 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2(3) Objectives
- 43 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.2(6) Objectives
- 44 Auckland Unitary Plan, D12 Waitākere Ranges Heritage Area Overlay, D12.1.1 Subdivision Scheduled Areas/sites
- 45 *Waitākere Ranges Protection Society v Auckland Council* [2017] NZHC 2141, [28], [31] and [32]
- 46 *Waitākere Ranges Protection Society v Auckland Council* [2017] NZHC 2141, [39]
- 47 Auckland Unitary Plan, H20 Rural – Waitākere Foothills Zone, H20.1 Zone Description
- 48 Auckland Unitary Plan Independent Hearings Panel, 2016, 16
- 49 Auckland Unitary Plan, H20 Rural – Waitākere Foothills Zone, H20.1 Zone Description
- 50 Auckland Unitary Plan, H21 Rural – Waitākere Ranges Zone, H21.1 Zone Description
- 51 Auckland Unitary Plan, H21 Rural – Waitākere Ranges Zone, H21.1 Zone Description
- 52 Auckland Unitary Plan Independent Hearings Panel, 2016, 16
- 53 Auckland Unitary Plan, H21 Rural – Waitākere Ranges Zone, H21.1 Zone Description
- 54 Waitākere Ranges Heritage Area Act 2008, Section 9
- 55 *Maehl v Lenihan* [2019] NZEnvC 58
- 56 *Maehl v Lenihan* [2019] NZEnvC 58, [16]
- 57 *Maehl v Lenihan* [2019] NZEnvC 58, [46]
- 58 *Maehl v Lenihan* [2019] NZEnvC 58, [45]
- 59 Waitākere Ranges Heritage Area Act 2008, Sections 10(1) and 11(1)
- 60 *Environmental Defence Society v New Zealand King Salmon Company Ltd* [2014] NZSC 38, [77]
- 61 Waitākere Ranges Heritage Area Act 2008, Sections 10(3) and 11(3)
- 62 Waitākere Ranges Heritage Area Act 2008, Section 12(1)
- 63 Waitākere Ranges Heritage Area Act 2008, Section 13(1)
- 64 Waitākere Ranges Heritage Area Act 2008, Section 15
- 65 *Duggan v Auckland Council* 92017) 20 ELRNZ 31, [72] to [83]
- 66 *Duggan v Auckland Council* 92017) 20 ELRNZ 31, [79]
- 67 *Duggan v Auckland Council* 92017) 20 ELRNZ 31, [79]
- 68 *Duggan v Auckland Council* 92017) 20 ELRNZ 31, [81]
- 69 *Duggan v Auckland Council* 92017) 20 ELRNZ 31, [81]
- 70 Waitākere Ranges Heritage Area Act 2008, Section 13(3)
- 71 *Protect Piha Heritage Society Inc v Auckland Regional Council* 015/2009 [98]
- 72 Waitākere Ranges Heritage Area Act 2008, Section 8
- 73 Auckland Council, 2018, 85
- 74 Auckland Council, 2018, 97
- 75 Melean Absolum Limited, 2017, 37
- 76 *Environmental Defence Society v New Zealand King Salmon Company Ltd* [2014] NZSC 38, [24](b) and [92] to [97]
- 77 Melean Absolum Limited, 2017, 33
- 78 Melean Absolum Limited, 2017, 35
- 79 Online Oxford dictionary at <https://www.lexico.com/en/definition/adverse>
- 80 *Environmental Defence Society v New Zealand King Salmon Company Ltd* [2014] NZSC 38, [145]
- 81 *Protect Piha Heritage Society Inc v Auckland Regional Council* A015/09 [98]
- 82 Resource Management Act 1991, Section 104(1)(c)
- 83 Auckland Unitary Plan Independent Hearings Panel, 2016, 14

8. EFFECTIVENESS OF THE WAITĀKERE RANGES HERITAGE AREA ACT

"There is no rationale for the difference. One side is covered in urban subdivision, the other side is green."

The Heritage Act has clearly been influential in protecting the landscapes of the Waitākere Ranges. However, the usefulness of the Act is hard to definitively measure: it is largely what hasn't happened as a result of the Act, rather than what has happened. The trend leading up to the passing of the Act was that subdivision and development was rampant, often badly designed and unsympathetic to the landscape. This pattern of development is no longer occurring, although the extent to which this can be attributed to the existence of the Act cannot be determined.

"The Act has had a chilling effect. Don't even go there, don't raise the issue."

The Heritage Act has had a direct impact on private plan changes which can be rejected if they are not consistent with the purpose and objectives of the Act. However, this same level of regulation does not apply to resource consent applications which are only required to have 'particular regard to' or consideration of the purpose and objectives of the Act. It is noted that the Act does leave open the possibility that consents resulting in minor landscape change, which could cumulatively become significant, might be granted. This is on the basis that

the Act provides no opportunity to decline resource consent applications that are contrary to its purpose and objectives (although, as noted, non-complying activities must either have minor adverse effects or not be contrary to the objectives and policies of the relevant plans, which in this context must give effect to the Heritage Act). However, there has been a significant drop in the number of non-complying consent applications lodged since the Heritage Act's passing indicating that the Act may add an additional hurdle to consent applications and consequently deter applications that challenge the planning framework.¹ In that regard, having a separate piece of protective legislation on the books, has helped strengthen landscape protection within the Heritage Area.

Another strength is the Heritage Act's requirement that policy and plans give effect to its purpose and objectives. This has resulted in robust policy and plan provisions specifically addressing heritage features and their protection. This has been the main success of the Heritage Act, but its role is not over. The Act serves as a constant reminder and continues to play an important role in vetting plan changes and reviews, in assessments of resource consent applications, and in local government planning contexts. It also has the potential to be significant in terms of mana whenua contributing to the management of land within the Heritage Area via deeds of acknowledgement.



Looking towards Piha (Craig Potton)

Compared to the Hauraki Gulf Marine Park Act 2000, the Heritage Act is much more specific – and this has also likely contributed to its success. The Heritage Act contains a comprehensive and clear list of heritage features to be protected, setting the scene for decision-making. One downside of this, however, is that all features are given equal weighting which can cause tension when deciding between competing objects. This is particularly so when it comes to consideration of community and economic wellbeing versus environmental values. Given the importance of the natural environment in the Waitākere Ranges these features should be given priority status in decision-making.

Whilst the Heritage Act has been successful in preventing urban development and the threat of creeping subdivision, this report has highlighted that other pressures have not been dealt with so well. In particular, the Act appears to have failed at promoting positive changes and restoration of the landscape.

The Waitākere Ranges Local Board has been a strong advocate for the Ranges; however, the Heritage Act has not resulted in sufficient budget to protect and restore the area. The specific Heritage Area Budget held by the Local Board is insufficient to both produce monitoring reports and fund the practical work of restoration.

Pest plants and animals are a major on-going threat to the Heritage Area and the prevalence of weeds and pests in the area is still largely uncontrolled. To date, Auckland Council has largely focused on pest management within the Regional Park, while the Waitākere Ranges Local Board has funded strategic weed control projects to educate, encourage and support landowners with weed management issues on private properties. However, eradication of all pest plants on private land has simply not been affordable within the budget constraints and there has been limited ability to require landowners to undertake weed control on existing properties.

The recent decision of *Coney v Auckland Council*² is likely to change this situation in the future. The decision has resulted in more stringent control of pest plants in the Heritage Area to give effect to the Act's objective to "protect, restore and enhance"³ the area. Auckland Council is now required to control some pest plants both within the Regional Park and within a 500m buffer – covering most of the Heritage Area. For other species, rules require private landowners within the buffer area to identify and remove pest plants. It is expected that this will result in greater weed control, enhancing the degraded nature of some of these properties.

The failure to promote restoration of the Waitākere Ranges may also be in part due to the failure of local area plans. These plans were intended to localise the Heritage Act's objectives and recognise the different characteristics of each area, as well as the opportunities and constraints in each community. They could have been a driver to bring together the community initiatives already in place and fill the gaps where needed. While development of the plans

captured the attention of communities, the Waitākere Ranges Local Board lacked funding to implement them.

If dedicated funding was made available, local area plans could be repurposed as strategic documents to guide restoration of the Heritage Area. They could be used to harness existing and future community efforts in a collaborative manner – focusing combined effort on areas that require restoration and identifying how that would occur (including potential funding sources to support the work). The plans should include clear conservation goals, outlining what success would look like. In this way, local area plans could be analogous to the Banks Peninsula 2050 Ecological Vision, a document developed by the Banks Peninsula Conservation Trust setting out eight conservation goals for the community to strive towards. This is discussed further in the case study on Banks Peninsula/Te Pātaka o Rākaihautū.

Consideration also needs to be given to ways in which the Heritage Act could be kept alive. This could be achieved through the establishment of an independent body, with dedicated funding, to manage the Heritage Area on behalf of the public. It could either be a separate entity – such as a Waitākere Ranges Heritage Area implementation and oversight body – or the Waitākere Ranges Local Board could be tasked, and resourced, to provide this specific function.

The entity would be charged with managing the area in line with the objectives of the Heritage Act, while creating a stronger pathway to implementation. The entity would be responsible for overseeing the implementation of local area plans and continuing the State of the Waitākere Ranges Heritage Area monitoring. This localised reporting provides a sharp and bespoke focus on issues in the



Waitākere Ranges and ensures that they are continually highlighted. The entity could also be tasked with providing educational material to incoming residents and visitors who may not know about the Heritage Area, its uniqueness and the restrictions in place as a result of the Heritage Act.

Much of the success of the Heritage Act is reliant on its status as a national policy statement, which must be given effect to in lower level planning documents. With the upcoming resource management reforms, this is something that needs to be recognised and carried forward. The Heritage Act has been an important piece of legislation for the Waitākere Ranges, and it is essential that the Act is not undone by the reform process.

A spotlight on Resource Management System Reform

In July 2019, Cabinet decided to undertake a comprehensive review of the resource management system. The review was led by an independent Resource Management Review Panel chaired by Hon Tony Randerson QC. The Panel reported in June 2020 and reform is likely to be progressed once a new government is formed after the October 2020 general election.

The Panel recommended repealing the RMA and replacing it with a new Natural and Built Environments Act. This new Act would have a revised purpose and principles which would signal a shift from managing environmental effects to achieving positive outcomes. The outcomes proposed for the new Act include the “protection and enhancement” of “outstanding natural features and outstanding natural landscapes” and “areas of significant indigenous vegetation and significant habitats of indigenous fauna”. The outcomes also place more emphasis on restoration and include “enhancement and restoration of ecosystems to a healthy functioning state”.⁴

The Panel recommended that existing RMA plans be integrated into combined regional plans, reducing the 100 or so plans that currently exist under the RMA to just 14. As the Auckland region already has a combined plan, this particular reform is unlikely to affect the Waitākere Ranges.

The new legislation would also require national direction to be made on a range of core matters. These would include identifying and describing outstanding natural features and ONLs of national significance amongst many other things. The new Act would also require environmental bottom lines and targets to be established.

The proposals give Māori matters more prominence. Decision-makers would be required to give effect to the principles of Te Tiriti o Waitangi, and the

overarching concept of Te Mana O Te Taiao would be incorporated into the purpose statement of the new Natural and Built Environments Act. Mana whenua would also be members of joint planning committees to provide the ability to influence strategic planning decisions. These provisions should give mana whenua a stronger voice over planning provisions affecting the Waitākere Ranges.

The Panel also recommended the creation of a Strategic Planning Act. This would require the preparation of regional spatial strategies encompassing both land and the coastal marine area. These strategies would align functions across other statutes, including the new Natural and Built Environments Act, the Local Government Act, the Land Transport Management Act 2003 and the Climate Change Response Act 2002. This could help ensure that there is more strategic planning which applies to the Waitākere Ranges, including delineating ‘no go’ areas for urban expansion and integrating planning across the land and sea domains on the west and Manukau Harbour coasts.

Overall, the proposals of the Resource Management Review Panel, if implemented into legislation, should provide greater support for protecting the landscape values of the Waitākere Ranges. However, there is a danger that the legislative reform process itself could weaken (or remove entirely) the very important legal relationship between the Heritage Act and national land use/environmental planning legislation. Vigilance is therefore required to ensure that the new Natural and Built Environments Act retains provisions such as a requirement for the new combined plans to give effect to the purpose and objectives of the Heritage Act.

Ensuring that the Heritage Act will endure through the reform process will potentially involve advocacy action by a range of different parties. EDS considers that although DOC is not a key landowner in the Heritage Area, it should exercise a strong role in the protection of the Waitākere Ranges, which is Auckland’s largest contiguous native forest. The national importance of the area is recognised by the Heritage Act. The Department should be involved in the reform process as an advocate for the continued recognition and protection of the Heritage Area and could also provide resource and technical assistance to those undertaking conservation work within it.

We also recognise the invaluable contribution of the Waitākere Ranges Protection Society in protecting the Heritage Area. This role as an advocate for the Ranges should continue; however we envisage that the focus of advocacy will change. Instead of preventing future subdivision, which has largely been achieved, the Waitākere Ranges Protection Society should be re-tasked with advocating for the continued recognition of the Heritage Act, and for the restoration and enhanced ecological health of the Waitākere Ranges.

ENDNOTES

1 <http://www.Waitakereranges.org.nz/area-act-2008.html>

2 *Coney v Auckland Council* [2020] NZEnvC 030

3 Waitākere Ranges Heritage Area Act 2008, Section 8(a)

4 Resource Management Review Panel, 2020, 484

9. CONCLUSION AND RECOMMENDATIONS

This case study, and the broader report being undertaken by EDS, highlights the fact that regional landscapes are different, the pressures on them are different, and their communities are different. For special places in Aotearoa, special guidance in the form of a local area Act, may be required.

Local area Acts are clearly a tool that can be very effective, provided the objectives are clear and explicit, and the Act is well implemented. This can be seen in the effectiveness of the Heritage Act in preventing sprawling subdivision and development in the Waitākere Ranges. What has been demonstrated in both this case study and others in the wider EDS project, is that regulation can be very effective in dealing with strong land change threats. However, in the case of the Waitākere Ranges, these pressures have changed and responses to the Heritage Act need to change with them.

While it is acknowledged that there is a concern that the RMA should be providing adequate protection, and that piecemeal legislation is not required, local Acts shouldn't be seen as a failing of national legislation. For our special landscapes, you cannot always rely on the RMA, and why shouldn't you put in statutory guidance to protect them?

Whether or not this is a workable model elsewhere depends on the circumstances. In the Waitākere Ranges, it happened to be the right time and the right place. There was strong development pressure from Auckland, New Zealand's biggest city, encroaching into the foothills; there was a supportive community, and the Council was on board with the idea.

Key recommendations

- The focus of the Heritage Act needs to shift to enhancing and restoring the ecological health of the Heritage Area. Local area plans could be repurposed to this end and harness community efforts towards it.
- Dedicated funding should be provided by Auckland Council to support restoration efforts.
- An independent oversight and implementation entity is needed – whether as a separate body or a specific function the Local Board is tasked with. This body would be responsible for overseeing the implementation of local area plans and Heritage Area monitoring, and would champion the area and lead restoration on behalf of the public.
- Continued advocacy is required. The Waitākere Ranges Protection Society has been invaluable in undertaking this role, and we encourage it to continue to protect the Heritage Area as well as foster a new push to prioritise restoration.
- The pending reform of the resource management system poses a challenge to the connection between the Heritage Act and the expected new legislation. This is an issue EDS could usefully assist the Waitākere Ranges Protection Society with.
- Given the ecological values of the Heritage Area, we consider there is a role for DOC to play in advocating for the recognition and protection of the area and providing technical assistance for those undertaking conservation work within it.



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The Waitākere Ranges is an iconic volcanic and coastal landscape located on the western fringe of Auckland City. It includes windswept beaches, dunes, streams, wetlands, ridges, headlands, cliffs, islands and extensive coastal forests. Rolling pastoral foothills frame the bush-covered Ranges from the east, providing a buffer between the Ranges proper and the sprawl of metropolitan Auckland. These landscapes support a wide range of flora and fauna. In particular, the Ranges contain the largest area of contiguous indigenous vegetation within the Auckland region, including many kauri trees.

Given their proximity to the country's largest city, the Waitākere Ranges have long been under considerable development pressure. In addition, increasing visitor numbers, kauri dieback disease, weeds and pests have continued to take their toll on the area.

In 2008, the Waitākere Ranges Heritage Area Act was passed to provide the area with an extra layer of statutory protection. The legislation established the Waitākere Ranges Heritage Area which spans around 27,700ha of both public and privately-owned land. The approach taken was at the time, and still is, novel in the New Zealand context. This case study explores the effectiveness of the legislation in protecting the high landscape values of the area. It also provides a set of recommendations on how the current management regime can be further strengthened to ensure that the Waitākere Ranges are protected and restored for the benefit of future generations.